

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER				PAGE 1 OF 63	
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER 91990026R0010	
6. SOLICITATION ISSUE DATE 05/07/2026					
7. FOR SOLICITATION INFORMATION CALL: a. NAME Charles Fields			b. TELEPHONE NUMBER (No collect calls) 202-987-0091		8. OFFER DUE DATE/ LOCAL TIME 06/04/2026 1200 ET
9. ISSUED BY CODE OIES US Department of Education Institute of Education Sciences 400 Maryland Ave SW Washington DC 20202			10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 518210 SIZE STANDARD: \$40		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
13b. RATING		14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ FOR PROPOSAL (RFP)			
15. DELIVER TO CODE CAMLBJ US Department of Education 400 Maryland Avenue SW, LBJ-2C274			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	Period of Performance: 07/01/2026 to 06/30/2031 Base Period Product/Service Code: DH10 Continued... <i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i>				

25. ACCOUNTING AND APPROPRIATION DATA		26. TOTAL AWARD AMOUNT (For Government Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.		☐ ARE ☐ ARE NOT ATTACHED	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA		☐ ARE ☐ ARE NOT ATTACHED	
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED		☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:	
30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (Type or print)		31b. NAME OF CONTRACTING OFFICER (Type or print) Charles Fields	
30c. DATE SIGNED		31c. DATE SIGNED	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0002	Period of Performance: 07/01/2026 to 06/30/2027 Option Period 1 (Option Line Item) Exercised NLT Date: 07/01/2027 Product/Service Code: DH10				
0003	Period of Performance: 07/01/2027 to 06/30/2028 Option Period 2 (Option Line Item) Exercised NLT Date: 07/01/2028 Product/Service Code: DH10				
0004	Period of Performance: 07/01/2028 to 06/30/2029 Option Period 3 (Option Line Item) Exercised NLT Date: 07/01/2029 Product/Service Code: DH10				
0005	Period of Performance: 07/01/2029 to 06/30/2030 Option Period 4 (Option Line Item) Exercised NLT Date: 07/01/2030 Continued...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER 39. S/R VOUCHER NUMBER

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Product/Service Code: DH10 Period of Performance: 07/01/2030 to 06/30/2031				

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D - Packaging and Marking

List of Clauses Incorporated by Reference

List of Clauses Included by Full Text

E - Inspection and Acceptance

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F - Deliveries or Performance

List of Clauses Included by Reference

List of Clauses Included by Full Text

G - Contract Administration Data

List of Clauses Included by Reference

List of Clauses Included by Full Text

ED.ALL.32-01 SUBMISSION OF INVOICES AND CONTRACT FINANCING REQUESTS (NOV 2024)

(a) Payments shall be rendered in accordance with the contract's payment terms and schedule(s).

(b) The Contractor shall submit invoices and requests for contract financing payments electronically in the secure web-based Invoice Processing Platform (IPP) system that can be accessed at: <http://www.ipp.gov/>. All submitted invoices and requests for contract financing payments must be accompanied by supporting documentation in accordance with the contract's terms and conditions. (Please identify all requests for contract financing payments as "Requests for Contract Financing Payments.")

(c) Invoice Number Format - The format for the invoice shall be the contract number and invoice number. The invoice number shall be sequential starting at 0001, have no spaces, dashes, or other special characters. The invoice number cannot exceed 21 characters. An example of an acceptable invoice number format follows: Contract No.:91990025C1234, Invoice No.:0001, IPP Invoice No.: 91990025C12340001. Should an invoice require re-submission, the vendor must use the same number followed by an 'R.' (For example: 91990025C12340001R). Should an invoice require multiple resubmissions, the vendor shall submit an 'R' for each resubmission. (For example, a second resubmission would be: 91990025C12340001RR).

(d) The Contractor's Government Business Point of Contact (as listed in System for Award Management (SAM)) should receive enrollment instruction via email from IPP. If the Contractor does not receive such instruction well in advance of initial invoice submission, the Contractor must reach out to IPP using the contact information listed in Section (e) below to ensure timely invoice submission.

(e) Contractor assistance with enrollment can be obtained by contacting the IPP Vendor Support Team at IPPCustomerSupport@fiscal.treasury.gov or (866) 973-3131.

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H - Special Contract Requirements

List of Clauses Included by Reference

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Clause Database	Clause Number	Clause Title
EDAR	3452.204-70	Records management. (OCT 2023)
EDAR	3452.237-71	Observance of administrative closures. (MAR 2011)

List of Clauses Included by Full Text

3452.201-70 Contracting Officer's Representative (COR). (MAR 2011)

(a) The Contracting Officer's Representative (COR) is responsible for the technical aspects of the project, technical liaison with the contractor, and any other responsibilities that are specified in the contract. These responsibilities include inspecting all deliverables, including reports, and recommending acceptance or rejection to the contracting officer.

(b) The COR is not authorized to make any commitments or otherwise obligate the Government or authorize any changes that affect the contract price, terms, or conditions. Any contractor requests for changes shall be submitted in writing directly to the contracting officer or through the COR. No such changes shall be made without the written authorization of the contracting officer.

(c) The COR's name and contact information: TO BE COMPLETED AT TIME OF AWARD

(d) The COR may be changed by the Government at any time, but notification of the change, including the name and address of the successor COR, will be provided to the contractor by the contracting officer in writing.

(End of Clause)

3452.243-70 Key personnel. (OCT 2023)

(a) The personnel designated as key personnel in this contract are considered to be essential to the work being performed hereunder. Prior to diverting any of the specified individuals to other programs, or otherwise substituting any other personnel for specified personnel, the contractor shall notify the contracting officer reasonably in advance and shall submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on the contract effort. No diversion or substitution shall be made by the contractor without written consent of the contracting officer; provided, that the contracting officer may ratify a diversion or substitution in writing and that ratification shall constitute the consent of the contracting officer required by this clause. The contract shall be modified to reflect the addition or deletion of key personnel.

(b) The following personnel have been identified as Key Personnel in the performance of this contract:

TO BE DETERMINED

(End of clause)

ADDENDUM TO 3452.237-71 OBSERVANCE OF ADMINISTRATIVE CLOSURES (MAR 2011)

The following Federal holidays are observed under this contract:

-New Year's Day

-Birthday of Martin Luther King, Jr.

-Washington's Birthday

-Memorial Day

-Juneteenth

-Independence Day

-Labor Day

-Columbus Day

-Veteran's Day

-Thanksgiving Day

-Christmas Day

Other Terms

ADDENDUM TO 3452.237-71 OBSERVANCE OF ADMINISTRATIVE CLOSURES (MAR 2011)

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-Thanksgiving Day

-Christmas Day

I - Contract Clauses

List of Clauses Included by Reference

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Clause Database	Clause Number	Clause Title	Item List
EDAR	3452.202-1	Definitions-Department of Education. (MAR 2011)	
EDAR	3452.208-72	Paperwork Reduction Act. (MAR 2011)	
EDAR	3452.209-71	Conflict of interest. (MAR 2011)	
EDAR	3452.224-70	Release of information under the Freedom of Information Act. (MAR 2011)	
EDAR	3452.227-70	Publication and publicity. (MAR 2011)	
EDAR	3452.227-71	Advertising of awards. (MAR 2011)	
EDAR	3452.239-70	Internet protocol version 6 (IPv6). (OCT 2023)	
EDAR	3452.242-71	Notice to the Government of delays. (MAR 2011)	
RFO	52.203-6	Restrictions on Subcontractor Sales to the Government. (JUN 2020) - Alternate I (NOV 2021)	
RFO	52.203-13	Contractor Code of Business Ethics and Conduct. (NOV 2021)	
RFO	52.203-17	Contractor Employee Whistleblower Rights. (NOV 2023)	
RFO	52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)	
RFO	52.204-9	Personal Identity Verification of Contractor Personnel. (JAN 2011)	
RFO	52.204-13	System for Award Management-Maintenance. (OCT 2018) (Deviation AUG 2025)	
RFO	52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or	

Clause Database	Clause Number	Clause Title	Item List
		Voluntarily Excluded. (JAN 2025) (Deviation AUG 2025)	
RFO	52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (NOV 2015) (Deviation AUG 2025)	
RFO	52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (NOV 2023) (Deviation AUG 2025)	
RFO	52.219-8	Utilization of Small Business Concerns. (JAN 2025) (Deviation SEP 2025)	
RFO	52.219-9	Small Business Subcontracting Plan. (JAN 2025) (Deviation FEB 2026)	
RFO	52.219-16	Liquidated Damages-Subcontracting Plan. (SEP 2021) (Deviation SEP 2025)	
RFO	52.222-3	Convict Labor. (JUN 2003)	
RFO	52.222-19	Child Labor-Cooperation with Authorities and Remedies. (JAN 2025) (Deviation SEP 2025)	
RFO	52.222-35	Equal Opportunity for Veterans. (JUN 2020) (Deviation SEP 2025)	
RFO	52.222-36	Equal Opportunity for Workers with Disabilities. (JUN 2020) (Deviation SEP 2025)	
RFO	52.222-37	Employment Reports on Veterans. (JUN 2020) (Deviation SEP 2025)	
RFO	52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (DEC 2010)	
RFO	52.222-41	Service Contract Labor Standards. (AUG 2018)	
RFO	52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (AUG 2018)	
RFO	52.222-50	Combating Trafficking in Persons. (OCT 2025) (Deviation SEP 2025)	
RFO	52.222-54	Employment Eligibility Verification. (JAN 2025) (Deviation SEP 2025)	
RFO	52.222-62	Paid Sick Leave Under Executive Order 13706. (JAN 2022)	
RFO	52.223-23	Sustainable Products. (MAY 2024) (Deviation SEP 2025)	
RFO	52.224-3	Privacy Training. (JAN 2017)	
RFO	52.225-1	Buy American-Supplies (OCT 2022) (Deviation SEP 2025)	
RFO	52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)	
RFO	52.227-14	Rights in Data-General. (MAY 2014)	
RFO	52.232-33	Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)	
RFO	52.232-40	Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)	
RFO	52.233-3	Protest after Award. (AUG 1996) (Deviation AUG 2025)	
RFO	52.233-4	Applicable Law for Breach of Contract Claim. (OCT 2004) (Deviation AUG 2025)	
RFO	52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation AUG 2025)	
RFO	52.244-6	Subcontracts for Commercial Products and Commercial Services. (OCT 2025) (Deviation SEP 2025)	
RFO	52.249-2	Termination for Convenience of the Government (Fixed-Price). (APR 2012)	

List of Clauses Included by Full Text

3452.204-71 Contractor security vetting requirements. (OCT 2023)

(a) The Contractor and its subcontractors shall comply with Department of Education personnel, cyber, privacy, and security policy requirements set forth in "Contractor Security Vetting Requirements" at <http://www.ed.gov/fund/contract/about/bsp.html>.

(b) Contractor employees who will have access to proprietary or sensitive Department information including "Controlled Unclassified Information" as defined in 32 CFR 2002.4(h), Department IT systems, Contractor systems operated with Department data or interfacing with Department systems, or Department facilities or space, or perform duties in a school or in a location where children are present, must undergo a personnel security screening and receive a favorable determination and are subject to reinvestigation as described in the "Contractor Vetting Security Requirements." Compliance with the "Contractor Vetting Security Requirements," as amended, is required.

(c) The type of security investigation required to commence work on a Department contract is dictated by the position designation determination assigned by the Department. All Department Contractor positions are designated commensurate with their position risk/sensitivity, in accordance with title 5 of the Code of Federal Regulations (5 CFR 731.106) and OPM's Position Designation Tool (PDT) located at: <https://pdt.nbis.mil/>. The position designation determines the risk level and the corresponding level of background investigations required.

(d) The Contractor shall comply with all Contractor position designations established by the Department.

(e) The following are the Contractor employee positions required under this contract and their designated risk levels:

High Risk (HR): Program Manager; Senior Software Engineer; Senior Data Scientist

Moderate Risk (MR): Information Security Officer; Software Engineer; Data Scientist; Subject Matter Expert

Low Risk (LR): Administrative Assistant; Programmer/Analyst; Developer; Training Director

(f) For performance-based contracts where the Department has not identified required labor categories for Contractor positions, the Department considers the risk sensitivity of the services to be performed and the access to Department facilities and systems that will be required during performance, to determine the uniform Contractor position risk level designation for all Contractor employees who will be providing services under the contract. The uniform Contractor position risk level designation applicable to this performance-based contract is: Moderate.

(g) Only U.S. citizens will be eligible for employment on contracts requiring a Low Risk/Public Trust, Moderate Risk/Public Trust, High Risk/Public Trust, or a National Security designation.

(h) An approved waiver, in accordance with the "Contractor Vetting Security Requirements," is required for any exception to the requirements of paragraph (g) of this section.

(i) The Contractor shall-

(1) Comply with the Principal Office (PO) processing requirements for personnel security screening;

(2) Ensure that no Contractor employee is placed in a higher risk position than for which the employee is approved;

(3) Ensure Contractor employees submit required security forms for reinvestigation in accordance with the time frames set forth in the "Contractor Vetting Security Requirements";

(4) Report to the COR any information (e.g., personal conduct, criminal conduct, financial difficulties) that would raise a concern about the suitability of a Contractor employee or whether a Contractor employee's continued employment would promote the efficiency of the service or violate the public trust;

(5) Protect sensitive and Privacy Act-protected information, including "Controlled Unclassified Information" as defined in 32 CFR 2002.4(h), from unauthorized access, use, or misuse by its Contractor employees, prevent unauthorized access by others, and report any instances of unauthorized access, use, or misuse to the COR;

(6) Report to the COR any removal of a Contractor employee from a contract within one business day if removed for cause or within two business days if otherwise removed;

(7) Upon the occurrence of any of the events listed under paragraph (b) of the clause at FAR 52.204-9, Personal Identity Verification of Contractor Personnel, return a PIV ID to the COR within seven business days of the Contractor employee's departure; and

(8) Report to the COR any change to job activities that could result in a change in the Contractor employee's position or the need for increased security access.

(j) Failure to comply with any of the personnel security requirements in the "Contractor Security Vetting Requirements" at <http://www.ed.gov/fund/contract/about/bsp.html>, may result in a termination of the contract for default or cause.

(End of Clause)

3452.227-72 Use and non-disclosure agreement. (MAR 2011)

(a) Except as provided in paragraph (b) of this clause, proprietary data, technical data, or computer software delivered to the Government with restrictions on use, modification, reproduction, release, performance, display, or disclosure may not be provided to third parties unless the intended recipient completes and signs the use and non-disclosure agreement in paragraph (c) of this clause prior to release or disclosure of the data.

(1) The specific conditions under which an intended recipient will be authorized to use, modify, reproduce, release, perform, display, or disclose proprietary data or technical data subject to limited rights, or computer software subject to restricted rights must be stipulated in an attachment to the use and non-disclosure agreement.

(2) For an intended release, disclosure, or authorized use of proprietary data, technical data, or computer software subject to special license rights, modify paragraph (c)(1)(iv) of this clause to enter the conditions, consistent with the license requirements, governing the recipient's obligations regarding use, modification, reproduction, release, performance, display, or disclosure of the data or software.

(b) The requirement for use and non-disclosure agreements does not apply to Government contractors that require access to a third party's data or software for the performance of a Government contract that contains the clause at 3452.227-73, Limitations on the use or disclosure of Government-furnished information marked with restrictive legends.

(c) The prescribed use and non-disclosure agreement is:

Use and Non-Disclosure Agreement

The undersigned, [Insert Name _____], an authorized representative of the [Insert Company Name _____], (which is hereinafter referred to as the "recipient") requests the Government to provide the recipient with proprietary data, technical data, or computer software (hereinafter referred to as "data") in which the Government's use, modification, reproduction, release, performance, display, or disclosure rights are restricted. Those data are identified in an attachment to this agreement. In consideration for receiving such data, the recipient agrees to use the data strictly in accordance with this agreement.

(1) The recipient shall-

(i) Use, modify, reproduce, release, perform, display, or disclose data marked with Small Business Innovative Research (SBIR) data rights legends only for government purposes and shall not do so for any commercial purpose. The recipient shall not release, perform, display, or disclose these data, without the express written permission of the contractor whose name appears in the restrictive legend (the contractor), to any person other than its subcontractors or suppliers, or prospective subcontractors or suppliers, who require these data to submit offers for, or perform, contracts with the recipient. The recipient shall require its subcontractors or suppliers, or prospective subcontractors or suppliers, to sign a use and non-disclosure agreement prior to disclosing or releasing these data to such persons. Such an agreement must be consistent with the terms of this agreement.

(ii) Use, modify, reproduce, release, perform, display, or disclose proprietary data or technical data marked with limited rights legends only as specified in the attachment to this agreement. Release, performance, display, or disclosure to other persons is not authorized unless specified in the attachment to this agreement or expressly permitted in writing by the contractor.

(iii) Use computer software marked with restricted rights legends only in performance of contract number TO BE COMPLETED AT TIME OF AWARD. The recipient shall not, for example, enhance, decompile, disassemble, or reverse engineer the software; time share; or use a computer program with more than one computer at a time. The recipient may not release, perform, display, or disclose such software to others unless expressly permitted in writing by the licensor whose name appears in the restrictive legend.

(iv) Use, modify, reproduce, release, perform, display, or disclose data marked with special license rights legends TO BE COMPLETED AT TIME OF AWARD.

(2) The recipient agrees to adopt or establish operating procedures and physical security measures designed to protect these data from inadvertent release or disclosure to unauthorized third parties.

(3) The recipient agrees to accept these data "as is" without any Government representation as to suitability for intended use or warranty whatsoever. This disclaimer does not affect any obligation the Government may have regarding data specified in a contract for the performance of that contract.

(4) The recipient may enter into any agreement directly with the contractor with respect to the use, modification, reproduction, release, performance, display, or disclosure of these data.

(5) The recipient agrees to indemnify and hold harmless the Government, its agents, and employees from every claim or liability, including attorneys fees, court costs, and expenses arising out of, or in any way related to, the misuse or unauthorized modification, reproduction, release, performance, display, or disclosure of data received from the Government with restrictive legends by the recipient or any person to whom the recipient has released or disclosed the data.

(6) The recipient is executing this agreement for the benefit of the contractor. The contractor is a third party beneficiary of this agreement who, in addition to any other rights it may have, is intended to have the rights of direct action against the recipient or

any other person to whom the recipient has released or disclosed the data, to seek damages from any breach of this agreement, or to otherwise enforce this agreement.

(7) The recipient agrees to destroy these data, and all copies of the data in its possession, no later than 30 days after the date shown in paragraph (8) of this agreement, to have all persons to whom it released the data do so by that date, and to notify the contractor that the data have been destroyed.

(8) This agreement shall be effective for the period commencing with the recipient's execution of this agreement and ending upon TBD. The obligations imposed by this agreement shall survive the expiration or termination of the agreement.

[Insert business name. _____]

Recipient's Business Name

[Have representative sign. _____]

Authorized Representative

[Insert date. _____]

Date

[Insert name and title. _____]

Representative's Typed Name and Title

(End of clause)

3452.239-71 Department information security and privacy requirements. (OCT 2023)

(a) The Contractor shall, at all times, maintain compliance with the most current version of Department security requirements as set forth in "Department Information Security and Privacy Requirements." These requirements are posted at <http://www.ed.gov/fund/contract/about/bsp.html>.

(b) The Contractor shall be notified when the "Department Information Security and Privacy Requirements" have been updated.

(c) If any such change causes a material increase or decrease in the cost of, or the time required for, performance of any part of the work under this contract, whether or not changed by the order, the Contractor may request an equitable adjustment to the contract price or the delivery schedule, as applicable. The Contracting Officer shall make an equitable adjustment in the contract price, the delivery schedule, or both, and shall modify the contract.

(d) The Contractor must assert its right to an equitable adjustment under this clause within 30 days from the date of receipt of notice of the changed requirement. However, if the Contracting Officer determines that the facts justify it, the Contracting Officer may receive and act upon the Contractor's request for equitable adjustment submitted before final payment of the contract. Failure to agree to any adjustment shall be a dispute under the Disputes clause. However, nothing in this clause shall excuse the Contractor from proceeding with the contract as changed.

(e) The Contractor shall incorporate the substance of this clause, its terms and requirements, including this paragraph, in all subcontracts, and require written subcontractor acknowledgement of the same. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

(f) Failure to comply with this clause, including the embedded Department Information Security and Privacy Requirements, may result in a termination of the contract for default or cause.

(g) Performance of this contract ☒ does include ☐ does not include the following: access to, collection of, or maintenance of information on behalf of the Department; or Department information technology (IT) products, systems, or hardware that are (1) used or operated by the Contractor on behalf of the Department, or (2) used in the performance of services or the furnishing of products. IT products, systems, hardware, and services include agency-hosted, outsourced, and cloud-based solutions, as well as incidental IT equipment that is acquired by the Contractor to support contract performance. When "does include" is selected, the categorizations shown below apply:

(1) In accordance with the Federal Information Processing Standard (FIPS 199), Standards for Security Categorization of Federal Information and Information Systems, the Information Security Categorization applicable to each security objective has been determined to be:

Confidentiality: ☐ Low ☒ Moderate ☐ High

Integrity: ☐ Low ☒ Moderate ☐ High

Availability: ☐ Low ☒ Moderate ☐ High

Overall Risk Level: ☐ Low ☒ Moderate ☐ High

(2) Performance of this contract ☒ does involve ☐ does not involve Personally Identifiable information (PII) as defined in OMB A-130 (2016).

(3) Performance of this contract ☒ does involve ☐ does not involve "Controlled Unclassified Information" as defined in 32 CFR 2002.4(h).

(End of Clause)

52.222-90 Addressing DEI Discrimination by Federal Contractors (APR 2026) (Deviation Effective Date)

(a) *Definitions.* As used in this clause-

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

J - List of Documents, Exhibits and Other Attachments

Clause List

LIST OF ATTACHMENTS

Attachment Number	Title
Section L	Section L - Instructions to Offerors
Section M	Section M - Evaluation Factors
1	Performance Work Statement - PWS
1.A	Quality Assurance Surveillance Plan (QASP) - PWS Attachment
2	Small Business Participation Plan Template

K - Representations, Certifications, and Other Statements of Bidders

List of Provisions Incorporated by Reference

List of Provisions Incorporated by Reference

Clause Provision	Provision Number	Provision Title
RFO	52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. (SEP 2024)
RFO	52.209-12	Certification Regarding Tax Matters. (OCT 2025)
RFO	52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation AUG 2025)

List of Provisions Included by Full Text

52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. (SEP 2024)

52.209-12 Certification Regarding Tax Matters. (OCT 2025)

52.240-90 Security Prohibitions and Exclusions Representations and Certifications. (Deviation AUG 2025)

3452.209-70 Conflict of interest certification. (MAR 2011)

(a)(1) The contractor, subcontractor, employee, or consultant, by signing the form in this clause, certifies that, to the best of its knowledge and belief, there are no relevant facts or circumstances that could give rise to an organizational or personal conflict of interest, (see FAR subpart 9.5 for organizational conflicts of interest) (or apparent conflict of interest), for the organization or any of its staff, and that the contractor, subcontractor, employee, or consultant has disclosed all such relevant information if such a conflict of interest appears to exist to a reasonable person with knowledge of the relevant facts (or if such a person would question the impartiality of the contractor, subcontractor, employee, or consultant). Conflicts may arise in the following situations:

(i) *Unequal access to information.* A potential contractor, subcontractor, employee, or consultant has access to non-public information through its performance on a government contract.

(ii) *Biased ground rules.* A potential contractor, subcontractor, employee, or consultant has worked, in one government contract, or program, on the basic structure or ground rules of another government contract.

(iii) *Impaired objectivity.* A potential contractor, subcontractor, employee, or consultant, or member of their immediate family (spouse, parent, or child) has financial or other interests that would impair, or give the appearance of impairing, impartial judgment in the evaluation of government programs, in offering advice or recommendations to the government, or in providing technical assistance or other services to recipients of Federal funds as part of its contractual responsibility. "Impaired objectivity" includes but is not limited to the following situations that would cause a reasonable person with knowledge of the relevant facts to question a person's objectivity:

(A) Financial interests or reasonably foreseeable financial interests in or in connection with products, property, or services that may be purchased by an educational agency, a person, organization, or institution in the course of implementing any program administered by the Department;

(B) Significant connections to teaching methodologies or approaches that might require or encourage the use of specific products, property, or services; or

(C) Significant identification with pedagogical or philosophical viewpoints that might require or encourage the use of a specific curriculum, specific products, property, or services.

(2) Offerors must provide the disclosure described above on any actual or potential conflict of interest (or apparent conflict of interest) regardless of their opinion that such a conflict or potential conflict (or apparent conflict of interest) would not impair their objectivity.

(3) In a case in which an actual or potential conflict (or apparent conflict of interest) is disclosed, the Department will take appropriate actions to eliminate or address the actual or potential conflict, including but not limited to mitigating or neutralizing the conflict, when appropriate, through such means as ensuring a balance of views, disclosure with the appropriate disclaimers, or by restricting or modifying the work to be performed to avoid or reduce the conflict. In this clause, the term "potential conflict" means reasonably foreseeable conflict of interest.

(b) The contractor, subcontractor, employee, or consultant agrees that if "impaired objectivity", or an actual or potential conflict of interest (or apparent conflict of interest) is discovered after the award is made, it will make a full disclosure in writing to the contracting officer. This disclosure shall include a description of actions that the contractor has taken or proposes to take to avoid, mitigate, or neutralize the actual or potential conflict (or apparent conflict of interest).

(c) *Remedies.* The Government may terminate this contract for convenience, in whole or in part, if it deems such termination necessary to avoid the appearance of a conflict of interest. If the contractor was aware of a potential conflict of interest prior to award or discovered an actual or potential conflict after award and did not disclose or misrepresented relevant information to the contracting officer, the Government may terminate the contract for default, or pursue such other remedies as may be permitted by law or this contract. These remedies include imprisonment for up to five years for violation of 18 U.S.C. 1001 and fines of up to \$5000 for violation of 31 U.S.C. 3802. Further remedies include suspension or debarment from contracting with the Federal government. The contractor may also be required to reimburse the Department for costs the Department incurs arising from activities related to conflicts of interest. An example of such costs would be those incurred in processing Freedom of Information Act requests related to a conflict of interest.

(d) In cases where remedies short of termination have been applied, the contractor, subcontractor, employee, or consultant agrees to eliminate the organizational conflict of interest, or mitigate it to the satisfaction of the contracting officer.

(e) The contractor further agrees to insert in any subcontract or consultant agreement hereunder, provisions that conform substantially to the language of this clause, including specific mention of potential remedies and this paragraph (e).

(f) *Conflict of Interest Certification.*

The offeror, [insert name of offeror _____], hereby certifies that, to the best of its knowledge and belief, there are no present or currently planned interests (financial, contractual, organizational, or otherwise) relating to the work to be performed under the contract or task order resulting from Request for Proposal No. [insert number] that would create any actual or potential conflict of interest (or apparent conflicts of interest) (including conflicts of interest for immediate family members: spouses, parents, children) that would impinge on its ability to render impartial, technically sound, and objective assistance or advice or result in it being given an unfair competitive advantage. In this clause, the term "potential conflict" means reasonably foreseeable conflict of interest. The offeror further certifies that it has and will continue to exercise due diligence in identifying and removing or mitigating, to the Government's satisfaction, such conflict of interest (or apparent conflict of interest).

Offeror's Name: _____
RFP/Contract No.: _____
Signature: _____
Title: _____
Date: _____

(End of provision)

52.225-2 Buy American Certificate. (OCT 2022)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.

(2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end

products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(4) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," and "foreign end product" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(b) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

(b) *[List as necessary]*

(c) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

L - Instructions,Conditions, and Notices to Bidders

List of Provisions Included by Reference

List of Provisions Included by Reference

Provision Database	Provision Number	Provision Title
EDAR	3452.233-70	Agency level protests. (OCT 2023)
RFO	52.204-7	System for Award Management-Registration. (NOV 2024) (Deviation AUG 2025)
RFO	52.222-56	Certification Regarding Trafficking in Persons Compliance Plan. (OCT 2025)

M - Evaluation Factors for Award

List of Provisions Included by Reference

List of Provisions Included by Full Text

**52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (OCT 2022)
(Deviation SEP 2025)**

(a) *Evaluation preference.* (1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

[] Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

INSTRUCTIONS TO OFFERORS

IES Data Repository and Restricted Use Data (DR-RUD) Program

INTRODUCTION

The U.S. Department of Education (ED), the Institute of Education Sciences (IES) has a requirement for the purpose of establishing and managing a virtual data enclave for IES Restricted Use Data (RUD) assets and approved licensees of RUD. This requirement will provide support for IES' Restricted Use Data (RUD) program, including managing a secure virtual data enclave populated with IES' RUD assets, reviewing applications to IES' RUD for feasibility and soundness, and reviewing all licensees' work products for disclosure risk prior to export from the virtual data enclave. IES requires that the contractor possess sufficient expertise in the data programs generating RUD, social science research methods, and statistical inference to make determinations regarding the feasibility of research projects proposed by applicants.

The Government intends to award a Firm-Fixed Price contract with a 12-month base period and four (4) 12-month option periods.

INSTRUCTIONS TO OFFERORS

The following instructions are for the preparation and submission of proposals in response to this RFP. Offerors are instructed to read the entire RFP document, including all attachments, prior to submitting questions and/or preparing proposals for submission. Omission of any required information may result in determination of an incomplete offer and rejection of the proposal.

The offeror is expected to demonstrate a thorough understanding of the proposed tasks and the existing resources, as specified in the *Attachment 1 – Performance Work Statement (PWS)*. The proposal should be written in sufficient detail so that the review panel can adequately judge its full merits. This RFP does not commit the Government to pay any cost for proposal preparation and submission.

The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial proposal should contain the offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

Period of Performance

The resultant contract shall have a total period of performance of 60 months with an anticipated award date of July 1, 2026.

Points of Contact

Charles Fields	Contracting Officer	Charles.Fields@ed.gov
Chase Cooper	Contracting Officer	Stephen.Cooper@ed.gov

Clarification Questions

The Government will accept clarification questions in response to this solicitation from potential offerors. Questions must be submitted electronically to the Points of Contact listed above, no later than **12:00PM Eastern Standard Time (EST) on May 14, 2026**.

Questions shall be submitted in a Microsoft (MS) Excel file following the format in the table below:

Question Number	Reference	Question Category	Question
#	<i>PWS, Attachment 2, Section/Page #</i>	<i>Contract or Technical</i>	<i>Question</i>

The Government reserves the right not to provide a response to clarification questions received after the due date. Responses to submitted questions will be posted for all interested parties.

Proposal Submission

Proposals must be received by the Points of Contact provided above, no later than **12:00PM Eastern Standard Time (EST) on June 4, 2026**. Responses must be submitted with the email subject line *“IES DR-RUD – Name of Offeror.”* Every proposal shall include the proposal volumes listed below and must be signed by an official authorized to bind the offeror’s organization.

General Formatting Requirements

Offerors must adhere to the following formatting requirements in their proposal submission(s):

1. **Font:** All font shall be Times New Roman, twelve (12) point, except for diagrams and drawings where impractical. Fonts in graphics, charts, tables, and other exhibits shall be no smaller than eight (8) point, and each page within each attachment shall be numbered consecutively. Organizational charts and logic models within the technical proposal may be single spaced and ten (10) point font, using landscape orientation.
2. **Footnotes:** Footnotes shall be no smaller than size ten (10) point font and single-spaced.
3. **Spacing:** Line spacing should be no larger or smaller than single-spaced.
4. **Margins:** Files shall be submitted in PDF format, margins shall be set at 1” for the top and bottom and .75” for the left and right, and the documents shall be submitted so that each page will print on 8.5” x 11” paper.
5. **File Size and Names:** Email attachments cannot exceed 25 megabytes (MB) in total. Compressed or “zip” files are acceptable. Submissions should be broken up into separate

emails if necessary. Electronic file names must be less than 40 characters long and shall not contain special characters (e.g. #, *, ?, (,), {, }, %, >, <, /, \, \$, |).

6. **Markings:** Each page containing proprietary information should be marked so, and each page shall contain the following legend at the bottom of each sheet: This Document is Source Selection Sensitive Information in accordance with (IAW) FAR 2.101 and 3.104.
7. **Resumes & Letters of Commitment:** Resumes shall be no longer than three (3) single-spaced pages and use 12-point font. Letters of commitment shall be included for all key personnel proposed that are not current employees of the prime or subcontractor(s). References are not required. Resumes and letters of commitment shall be included as an appendix to the technical proposal (Volume I) and shall not count against the page limit.
8. **Exclusions:** The cover page, table of contents, cover letter (optional), resumes and letters of commitment are excluded from the page limit requirement. ED will not review or consider any technical information included on excluded pages for the purpose of technical evaluation.

Proposal Instructions and Contents

In response to this RFP, it is the contractor's responsibility to provide current, relevant, complete, and accurate information in their proposal. The offeror's submission shall consist of the following three, separate volumes:

- I: Technical Proposal Volume
- II: Past Performance Volume
- III: Business Proposal Volume

Each volume shall be separate and complete in itself so that evaluation of one may be accomplished independently of the other. Price and cost information shall be restricted to the price volume and the technical volume shall not contain reference to any specific price/costs although resource information (e.g. staff hours) may be included so that the offeror's understanding of the scope of the work may be evaluated.

All volumes shall include a Cover Page and Table of Contents. The cover page shall include, at minimum, the project title, name of the offeror, UEI number, list of subcontractors (if applicable), contact information (name, phone number, and email address) for the offeror's authorized official for contract administration and the individual(s) authorized to conduct negotiations on behalf of the vendor. The Table of Contents should provide a clear guide to the organization of the proposal, including page number references.

Volume I – Technical Proposal

The technical volume must not exceed twenty-five (25) single-sided pages and shall be submitted as a PDF file. Any pages in excess of the page limitation will be disregarded and will not be evaluated.

Vendors are encouraged to propose the most effective solutions that align with the tasks and objectives outlined in the PWS. The Government seeks innovative approaches that meet all minimum requirements while maximizing cost savings.

Offerors must provide sufficient detail for the Government to fully evaluate the proposed technical approach. The evaluation panel will not make any assumptions, therefore proposals shall be clear, complete, and free of ambiguity.

In addition to the cover page and table of contents requirement, described in the section above, the offeror's technical proposal shall include the following sections:

1. **Introduction:** The introduction shall briefly describe the vendor's understanding of the PWS objectives, expected outcomes, and their relevance. It shall provide a concise summary of the vendor's qualifications and distinctive strengths. The introduction shall also summarize the proposed approach and provide why it is well-suited to meet the contract requirements, highlighting any unique, insightful, or comprehensive aspects.
2. **Technical Approach:** The offeror's proposed technical approach shall provide a comprehensive, detailed and quality plan for achieving the goals and objectives of each task described in the PWS, in a timely manner. These task descriptions shall completely and concisely explain the strategies, operations, and procedures the offeror is proposing to achieve the objectives of this effort.

This section shall also describe challenges, the program risks and the vendor's approach to address and mitigate the identified risks. Vendors are expected to demonstrate a thorough understanding of ED's data needs, including NCES' Statistical Standards, as well as the programs generating data for the RUD program. In the deliverable schedule, the offeror shall note and provide justification for any adjustments to the proposed schedule that are considered necessary for success of the project.

3. **Project Management Plan:** The offeror's proposed management plan shall provide sufficient and adequate managerial oversight to ensure that the proposed technical solution is properly managed and monitored. The offeror shall define proposed lines of communication, responsibility, and authority for planning, execution and management of the resultant contract. Overall the management plan should provide a clear path for all deliverables and services to be completed successfully, on time, and with a high level of quality, in accordance with the PWS.

Any sub-contractual arrangements shall be described thoroughly and the response must clearly identify those tasks that will be completed by sub-contractors and the role(s) that

they will fulfill. The offeror shall ensure that proposed subcontractors/consultants are free of conflicts of interest that might bias their approach to this work.

- **Subfactor 1: Start-Up and Phase-Out Plan:** The offeror shall present a Start-Up Plan which contains a reasonable, realistic approach for assuming full contractual responsibility within thirty (30) days of award without disruption or degradation of performance. The plan shall identify risks, propose appropriate mitigation strategies, and propose a realistic, achievable and affordable start-up schedule and staffing plan. The plan shall ensure sufficient resources are on hand and available to begin work under this requirement and include a statement that the proposed personnel are available, trained, and qualified to perform the work under this effort.

In addition, the offeror shall provide a Phase-Out Plan submitted demonstrating their ability to enable a smooth transition of replacement services prior to the end of the contract period of performance. The plan shall provide support for up to ninety (90) days to the selected contractor if the incumbent contractor is not selected herein.

4. **Proposed Personnel:** The offeror's proposed personnel shall possess the qualifications, experience, and skills necessary to successfully perform the roles identified in the proposed solution. This section shall clearly identify each proposed key personnel by name and role, and describe their competencies, relevant experience, and the value they bring to the project team.

Resumes shall be submitted for all proposed key personnel and should include only directly relevant experience, educational background, and professional activities. All resumes shall be limited to three (3) pages each, follow a consistent format and organization and should be provided as an appendix to the proposal.

5. **Small Business (SB) Participation:** The Government places higher value on approaches in which small businesses perform substantive work rather than only menial, administrative or supply-line tasks. Substantive work includes technical, analytical, or other significant services beyond activities similar to courier, office supply, or travel services. Offerors will be evaluated based on the level of proposed small business participation in the performance of this acquisition relative to the targets, objectives, and requirements established herein.

Other than small business contractors may achieve small business participation through subcontracting to small businesses. Small business contractors may achieve small business

participation through their own performance / participation as a prime and through a joint venture, teaming arrangement, and subcontracting to other small businesses. A small business prime contractor's own participation counts towards the percentages set forth in this evaluation factor. Small businesses are not required to subcontract to other small businesses to achieve small business participation.

All offerors (both Other than Small Business and Small Businesses) must complete and submit *Attachment 2 - Small Business Participation Plan Template* to demonstrate their proposed approach to meeting small business objectives.

This factor is organized into the following sections via the Small Business Participation Plan:

- Section 1 - Division of Work; Small Business Targets and Corresponding Dollars.
- Section 2 - Enforceable Commitments to Small Businesses.
- Section 3- Past Performance in the Utilization of Small Businesses.

All supporting documentation for the Small Business Participation Plan must be included within the plan document.

Note: The Small Business Participation Plan can be included as an appendix and will not count against the page limitations for this volume.

Additionally, separate from the Small Business Participation Plan, a Small Business Subcontracting Plan is also required in accordance with FAR 52.219-9 for Other than Small Businesses ONLY (i.e., Large Businesses). Other than Small Business concerns that are considered small based on the size standards for NAICS 518210, shall submit acceptable Subcontracting Plans to be eligible for award. The plan, at a minimum shall address the elements set forth in FAR Clause 52-219-9(d)(1) through (15). Subcontracting Plans shall reflect and be consistent with the commitments offered in the Small Business Participation Plan. Subcontracting Plans will only be reviewed for acceptability for those Offeror(s) deemed to be apparent awardee(s). If the apparent awardee's Subcontracting Plan is not initially acceptable, the Contracting Officer may engage in clarifications in regard to the Subcontracting Plan and this shall not be deemed discussions.

Volume II – Past Performance

The vendor shall provide relevant past performance information for three (3) current or previous contracts, performed within the last five (5) years, that are similar in dollar value, scope, and complexity to this requirement. Past performance examples may include contracts performed for Government agencies and private-sector organizations. The past performance volume must not exceed five (5) pages, excluding the cover page and table of contents

Section L – Instructions to Offerors

For contractors with no relevant performance history or new corporate entities, the offeror may submit information about prior contracts involving its officers and/or employees with details about the role(s) performed and how that experience is relevant to this effort. The Government may consider information regarding the past performance of predecessor companies, key personnel with relevant past performance, or subcontractors that will perform key aspects of the requirement.

This volume shall be organized into the following sections:

(1) Section 1 – Contract Descriptions

This section shall include the following information in the following format:

- (a) Contractor/Subcontractor place of performance, CAGE Code and UEI Number. If the work was performed as a subcontractor, also provide the name of the prime contractor and Point of Contact (POC) within the prime contractor organization (name, and current address, e-mail address, and telephone number).
- (b) Contracting activity, and current address, Procuring Contracting Officer's name, e-mail address and telephone number.
- (c) Procuring agency's technical representative/COR's name, and current e-mail address, and telephone number.
- (d) Contract administration activity and the Administrative Contracting Officer's name, and current e-mail address and telephone number.
- (e) Contract Number and, in the case of Indefinite Delivery type contracts, GSA contracts, and Blanket Purchase Agreements, include the corresponding Delivery Order Number.
- (f) Contract Type (specific type such as Firm Fixed Price (FFP), Cost Reimbursement (CR), Time & Materials (T&M), etc.)
- (g) Awarded price.
- (h) Final or projected final price.
- (i) Original delivery schedule, including start and completion of work dates.
- (j) Final or projected final delivery schedule, including start and completion of work dates.

(2) Section 2 - Performance

Offerors shall provide a specific narrative for each contract listed in Section 1 describing the objectives achieved and detailing how the effort is relevant to the requirements of this RFP. In addition, vendors shall address the following:

Section L – Instructions to Offerors

- (a) For any contracts that did not/do not meet original schedule or technical performance requirements, provide a brief explanation of the reason(s) for the shortcomings and any corrective action(s) taken to avoid recurrence.
- (b) The vendors shall list each time the delivery schedule was revised and provide an explanation of why the revision was necessary. All Requests for Deviation and Requests for Waiver shall be addressed with respect to causes and corrective actions.
- (c) The offerors shall also provide a copy of any Cure Notices or Show Cause Letters received on each contract listed and a description of any corrective action implemented by the vendor or proposed subcontractor.
- (d) The offeror shall also provide a brief explanation describing any problems encountered in performance of the identified contracts and the corrective actions taken.
- (e) Vendors shall indicate if any of the contracts listed were terminated, providing the type and reasons for the termination.

(3) Section 3 – New Corporate Entities

New corporate entities may submit data on prior contracts involving its officers and employees. However, in addition to the other requirements in this section, the vendor shall provide details regarding the role(s) performed by the referenced parties in the prior contracts cited. Information should be included in the format described in the sections above.

Note: The Government reserves the right to consider other available sources of performance information regarding the firm and its teaming partners and subcontractors in addition to those provided in the submission.

Volume III – Business Proposal

There is no page limit for the business proposal. This volume shall be submitted as a separate document, however the information presented in the business proposal should be consistent with the technical proposal. Offerors shall submit a complete price build-up to include the identification of proposed labor categories by named individuals, labor rates, labor hours, rates and proposed costs for other direct costs, and indirect costs. The prices shall be presented by task/subtask and shall include any applicable assumptions used to formulate the price build-up. As part of the detailed pricing breakdown, the contractor shall indicate the per-user account price for the fee IES intends to charge users in accordance with OMB Circular A-25 as detailed in PWS section 5.2.

The contractor shall provide justification for all proposed rates and costs. For all other proposed costs, such other direct costs (ODCs), the contractor must provide an explanation for how the price was selected and evidence to substantiate how this price is deemed reasonable, such as

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actual cost records or price quotes, a comparison to similar rates proposed on other competitive contracts, or commercial price lists. Cost breakouts shall include rates, quantities, and any other necessary and complete information in sufficient detail for ED to make a fair and reasonable price determination.

The Contracting Officer may reject a proposal if a negative determination is made, or if proposed prices are found not to be reasonable. The business volume shall be submitted in accordance with the proposal instructions and general formatting requirements provided above.

Abstract Chart

At the beginning of the business proposal, the contractor shall provide a summary chart exhibiting the offeror's proposed budget for the full period of performance, similar to the example below:

Task	Base Period	Option Period 1	Option Period 2	Option Period 3	Option Period 4	Total
1						
2						
3						
4						
5						
6						
7						
Total						

Additional Details:

- The proposal shall list the names and contact information of persons authorized to conduct negotiations, in addition to the identification of a contract administrator if the offeror receives the award;
- The proposal shall include a statement to the effect that your offer is firm for a period of at least 60 calendar days from the date of receipt of offers specified by the Government;
- All prices in the business proposal shall be rounded to the nearest cent (e.g., \$6.03), and the offeror shall ensure that rounding issues do not result in summation errors.
- A copy of all tables and charts in the business proposal as well as source tables used to produce the summary table in the proposal shall be provided in Microsoft Excel.
- Conflict of Interest Certificate. The business volume shall include a Conflict-of-Interest Certificate (as provided in the solicitation under EDAR 3452.209-70 Conflict of Interest Certification).

Labor Categories and Labor Rates: Offerors must submit their fully loaded labor rates and are encouraged to propose discounted rates to improve the competitiveness of their proposal. The labor mix and labor categories proposed must be consistent with the personnel proposed in the technical proposal. The business proposal must provide a complete price breakdown by task/subtask and by contract period for ED to determine the total price per period

Section L – Instructions to Offerors

and per task/subtask. This shall be completed for each of the potential five (5) contract years/periods and include all proposed costs.

The breakdown shall include the identification of proposed personnel, labor categories, and level of effort; distinguishing prime contractor prices from subcontractor/consultant prices, for evaluation purposes. If subcontractors or consultants are proposed, a detailed breakdown of subcontractor/consultant prices can be included in the master breakdown. The detailed subcontractor/consultant price breakdown(s) may also be provided in separate Excel document if necessary however, their price must be included in the overall master breakdown of the prime offeror.

Firm Fixed Price (FFP) Payment Schedule: The contractor shall submit a detailed payment schedule for the base period and each option period. This schedule will be included as an appendix to the business proposal and incorporated into the resulting contract. All payments must be tied to completed deliverables or actions (e.g., submission and Government approval of a deliverable), rather than the mere passage of time (e.g., monthly payments).

The payment schedule must be clear, well-organized, and structured ease of verification that the total payments for each deliverable match the proposed price. The offeror may use their own discretion in determining an appropriate schedule however payments shall be proposed in alignment with the level of effort and associated costs for each deliverable. The Government will authorize payment only after the Department has accepted the corresponding deliverable. Generally, the payment schedule should be provided in a simple format comparable to the table below:

Payment Schedule (Base Period)			
<i>Task/Subtask Number</i>	<i>Deliverable or Action Description</i>	<i>Due Date</i>	<i>Amount</i>
Total			

After contract award, the contractor shall invoice in accordance with the approved payment schedule.

Note: The payment schedule should be submitted in a Microsoft Excel file and properly formatted for printing on an 8.5" x 11" document.

EVALUATION FACTORS

IES Data Repository and Restricted Use Data (DR-RUD) Program

The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. Proposals will be evaluated in accordance with the following evaluation factors, listed in descending order of importance:

1. Technical Approach
2. Management Approach
3. Past Performance
4. Small Business Participation
5. Price

Although price is an important factor, evaluation factors other than price when combined are significantly more important than price. As non-price merit becomes more equal as determined through the technical evaluation, the price will become a more significant factor. However, to be considered for an award, an offer must be fairly and reasonably priced. The Contracting Officer will determine whether any difference in technical merit is worth the difference in price.

Factor 1 – Technical Approach

The Government will evaluate the offeror's technical approach to determine the extent to which the proposed methods, strategies, and execution plan demonstrate a clear, comprehensive, and feasible approach to meeting the requirements of the PWS. The Government will also consider the degree to which the proposed technical approach, taken as a whole, increases confidence in the offeror's ability to successfully perform all PWS requirements. The evaluation team will consider the following elements:

1. ***Understanding of Requirements:*** The Government will assess the offeror's demonstrated understanding of the goals, objectives, tasks, and deliverables described in the PWS. This includes evaluating whether the proposal clearly reflects a thorough grasp of ED's data needs, NCES Statistical Standards, and the specific data programs related to the RUD effort.
2. ***Quality and Soundness of the Technical Approach:*** The Government will evaluate the quality, clarity, and soundness of the offeror's proposed strategies, operations, and procedures for accomplishing each task. Consideration will be given to whether the proposed approach is:
 - Comprehensive and detailed
 - Logical and well organized

- Sufficient in addressing the complexities of the requirement
 - Capable of achieving the stated objectives in a timely manner
3. ***Risk Identification and Mitigation Plan:*** The Government will evaluate the extent to which the offeror identifies potential program challenges and risks, as well as the soundness and effectiveness of the proposed mitigation strategies. Offerors are expected to clearly articulate anticipated issues and present realistic, proactive approaches to address them.
 4. ***Deliverable Schedule and Feasibility:*** The Government will evaluate whether the Offeror's timeline supports successful and timely contract performance. The evaluation team will review the proposed deliverable schedule to assess its:
 - Realism and feasibility
 - Consistency with the PWS requirements
 - Justification for any proposed schedule adjustments
 5. ***Proposed Personnel:*** The Government will evaluate the offeror's proposed personnel submission to determine the extent to which the proposed team demonstrates the capability to successfully perform the requirements of the PWS. The evaluation team will consider the following elements:
 - Key Personnel Qualifications and Experience
 - Suitability and Value to the Proposed Solution

Factor 2 – Management Approach

The Government will evaluate the offeror's management approach to determine the extent to which the proposed project management plan demonstrates a clear, effective, and reliable framework for overseeing, coordinating, and ensuring successful performance of all contract requirements. The evaluation team will consider the following elements:

1. ***Project Management Plan:*** The Government will evaluate whether the overall management plan supports successful, timely, and high-quality completion of all contract deliverables and services as required by the PWS. The evaluation team will assess the offeror's proposed management structure and plan to determine whether it provides:
 - Adequate managerial oversight and effective mechanisms for monitoring performance
 - Defined lines of communication, roles, responsibilities, and authority
 - Processes for planning, executing, and managing contract tasks
 - Quality control and performance monitoring methods
2. ***Subcontractor Management:*** The Government will evaluate the clarity, completeness, and feasibility of any proposed subcontractor arrangements, including:

- Identification of tasks assigned to subcontractors
 - Description of their roles and anticipated contributions
 - Management approach for integrating and overseeing subcontractor performance
 - Assurance that subcontractors and/or consultants are free of any conflicts of interest
3. ***Start-Up and Phase-Out Plan:*** The Government will evaluate both the Start Up Plan and Phase Out Plan to determine their feasibility, realism, completeness, and effectiveness in ensuring smooth transitions into and out of the contract.

The Government will assess the extent to which the Start-Up Plan:

- Demonstrates a clear, logical, and achievable approach to assuming full contractual responsibility within 30 days of award
- Provides adequate staffing and resource allocation to avoid performance disruptions
- Identifies reasonable risks and proposes sound, effective mitigation strategies

The Government will assess the extent to which the Phase-Out Plan:

- Demonstrates the offeror's ability to support a transition period of up to 90 days prior to contract end
- Provides a clear strategy for transitioning work to a successor contractor and ensure continuity of services and retention of necessary knowledge during the transition
- Minimizes risk of service disruption to the Government

Factor 3 – Past Performance

The Government will evaluate past performance to determine the extent to which the offeror has demonstrated a record of relevant, recent, and successful performance on contracts similar in dollar value, scope, and complexity to this requirement. The evaluation team will consider the following elements:

1. ***Relevance and Recency of Past Performance:*** The Government will assess whether the contracts submitted:
 - Were performed within the last five (5) years
 - Are similar in scope, dollar value, and complexity
 - Demonstrate experience comparable to this effort
2. ***Contract Performance:*** For each cited contract, the Government will consider the:
 - Achievement of contract objectives
 - Adherence to schedule and technical requirements including reason(s) for any schedule and delivery changes or revisions
 - Timeliness and quality of deliverables
 - Explanations provided for any performance issues, including the effectiveness of corrective actions taken to prevent recurrence

Section M – Evaluation Factors

- Documentation and resolution of Requests for Deviation and Requests for Waiver
- Any cure notices, show cause letters, including the adequacy of corrective actions and any contract terminations, including the type and reasons

For contractors with no relevant corporate past performance, the Government may take into account information regarding the past performance of predecessor companies, key personnel with relevant past performance, or subcontractors that will perform key aspects of the requirement. If no relevant information on past performance is available for an offeror, the offeror will not be evaluated favorably or unfavorably, however will receive a neutral rating for this criteria.

Factor 4 – Small Business Participation (Pass/Fail)

The Government will evaluate the extent of small business participation for prime offerors and small business subcontractors in terms of the percentage of the offeror's Total Contract Value. Offeror's small business participation plan will be evaluated to determine whether the plan meets or exceeds ED's Fiscal Year (FY) 2026 Small Business Subcontracting Goals which are reflected as a percentage of total subcontracting dollars in the table below:

FY2026 Small & Socioeconomic Business Subcontracting Goals	
<i>Category</i>	<i>Goals</i>
Small Business	34.37%
Women-Owned Small Business	5%
Small Disadvantaged Business	5%
Service Disabled Veteran-Owned Small Business	5%
HUBZone Business	3%

The evaluation team will consider the following elements:

1. Compliance with all small business participation submission requirements
2. Whether the proposed small business utilization levels, including clarity of roles and planned contributions is realistic and feasible
3. Demonstrated commitment to meaningful participation by small businesses, including socioeconomic categories
4. History of meeting or exceeding small business subcontracting goals, and processes for ensuring participation levels are achieved

A rating of "Pass" will be assigned when the offeror meets or exceeds ED's small business subcontracting goals. Small business prime contractors will automatically receive a "Pass" rating, as will other-than-small business offerors whose proposed subcontracting to small businesses exceeds the applicable departmental goal (34.37%).

While the rating for this factor is Pass/Fail, proposals that demonstrate higher levels of small business participation may be viewed more favorably within the overall source selection process than those proposing lower levels of participation. Offerors who are unable to, at minimum, meet the goals above, shall provide detailed justification for consideration.

Factor 5 – Price

Proposed prices will be evaluated but not scored. The price evaluation will determine whether the proposed prices are complete, fair and reasonable in relation to the RFP requirements. The resultant contract will include FAR Clauses 52.217-8 and FAR 52.217-9. The total evaluated price will be calculated as the sum of the offeror's proposed prices for each task.

Evaluation of options or optional tasks shall not obligate the Government to exercise any options or optional tasks. The Government intends to use proposed pricing for option period 4 to evaluate pricing for 52.217-8. Interested vendors are hereby notified that should the Government exercise its right to this option, the Government will utilize the prevailing rates agreed upon in the contract, and in use, at the time before the option is utilized.

Rating Scheme

For the non-price factors 1 - 3, evaluators will apply the following ratings:

Rating	Definition
High Confidence	The Government has high confidence that the Vendor understands the requirement, proposes a sound approach, and will be successful in performing the contract.
Some Confidence	The Government has some confidence that the Vendor understands the requirement, proposes a sound approach, and will be successful in performing the contract.
Low Confidence	The Government has low confidence that the Vendor understands the requirement, proposes a sound approach, and will be successful in performing the contract.

The following elements will be considered when evaluating the technical proposal. When evaluating these elements, the following definitions shall be applied in the rating and supporting narrative:

- **Strength:** An element of the proposal which enhances a requirement of the solicitation in a beneficial way to the Government. A discussion of a strength in the proposal shall be accompanied by the benefit to the Government associated with that strength.
- **Weakness:** A flaw in the proposal that increases the likelihood of unsuccessful contract performance. A discussion of a weakness in the proposal shall be accompanied by the risk to the Government associated with that weakness.
- **Significant Weakness:** A flaw in the proposal that appreciably increases the likelihood of unsuccessful contract performance. A discussion of a significant weakness in the proposal shall be accompanied by the risk to the Government associated with that significant weakness.
- **Deficiency:** A material failure of the proposal to meet a Government requirement or a combination of significant weaknesses that increase the likelihood of unsuccessful

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performance to an unacceptable level. If a deficiency is contained in the proposal, the proposal is determined to be unacceptable and ineligible for award.

- **Risk:** An element of the proposal that could potentially impact the successful performance of the contract, such as quality and timeliness of products and services.

U.S. Department of Education Institute of Education Sciences

Performance Work Statement (PWS) IES Data Repository and Restricted Use Data (DR-RUD) Program

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1. Introduction

The Institute of Education Sciences (IES) is the statistics, research, and evaluation arm of the U.S. Department of Education (ED). The goal of IES is to provide national leadership in expanding fundamental knowledge and understanding of education from early childhood through postsecondary study, in order to provide parents, educators, students, researchers, policymakers, and the general public with reliable information about the condition and progress of education in the United States, from early childhood through postsecondary education; educational practices that support learning and improve academic achievement and access to educational opportunities for all students; and the effectiveness of federal and other education programs.

The Education Sciences Reform Act (ESRA, Title I of P.L. 107-279) established IES as an independent research arm of ED. Title I, Part A, of ESRA establishes IES as a research institute within ED, intended to provide “national leadership in expanding fundamental knowledge and understanding of education from early childhood through postsecondary study.” IES is authorized to carry out these objectives by compiling statistics, conducting research and evaluations, and disseminating information.

IES executes its mission through four national education centers and an Office of the Director:

- The **National Center for Education Research (NCER)** sponsors research leading to the accumulation of knowledge and understanding of education.
- The **National Center for Education Statistics (NCES)** collects and analyzes education information and statistics in a manner that meets the highest methodological standards.
- The **National Center for Education Evaluation and Regional Assistance (NCEE)** supports evaluation, technical assistance, development, and dissemination activities.
- The **National Center for Special Education Research (NCSE)** sponsors research to expand knowledge and understanding of the needs of infants, toddlers, and children with disabilities.
- The **Office of the Director** carries out specific duties, such as proposing research priorities and establishing procedures for technical and peer review. The Standards and Review Office (SRO) carries out rigorous peer review of all research, statistics, and evaluation reports conducted by, or supported through, the Institute and falls under the Office of the Director.

2. Legislative Authority

Section 154 of ESRA allows the NCES Commissioner to “enter into contracts” to carry out his or her duties under ESRA Part C. Those duties include the dissemination of statistical data (Section 151 of ESRA) and providing copies of “statistical records ... for State and local officials, public and private organizations, and individuals” (Section 156(a)(1) of ESRA). Notably, those authorized activities must be done in a manner that preserves the confidentiality of statistical data (see ESRA Section 183 and the Confidential Information Protection and Statistical Efficiency Act).

3. Purpose of Scope of Work

This requirement enables researchers to seek and obtain secure, remote access to approved IES Restricted Use Data (RUD), most notably data from NCES and NCEE, for approved research projects. Secure, remote access to these data strengthens the evidence base for policymakers and educators while enhancing the security of restricted use data assets.

4. Requirement Context

This requirement contributes to IES's and ED's mission to promote evidence-building for policymakers and the education field. Ensuring researchers' secure, remote access to RUD fulfills IES's mission to provide evidence to guide education practice and policy, with a focus on improving student outcomes, while meeting IES's responsibilities to protect confidential information collected for statistical purpose.

Secure, remote access to a subset of restricted use datasets has been successfully provided by an organization currently under contract. Originally, the organization provided secure access to IES Restricted Use License holders under a contract administered by the National Science Foundation that included support for IES requirements. Now, IES has a separate, short-term contract with that same vendor to serve as a "bridge" during this acquisition process. Another subset of users continue to access RUD with physical media, such as CD-ROMs. All activities related to physical media are managed via a separate IES contract and contractor. IES seeks to improve the security of its RUD program by transitioning all physical licensees to remote access for their approved data by September 30, 2026.

This requirement supports NCES' transition to a fully digital Restricted Use Data License program through the use of a virtual data enclave, overseeing the eventual removal physical media with RUD from circulation, and running key aspects of the RUD license application process to expand secure, remote access to new users and new data.

Historically, the RUD license application process—for both remote access and access to physical media—has had the following steps:

1. A user submits their application via the Standard Application Process (SAP) at researchdatagov.org;
2. The application is downloaded from the SAP by an existing IES contractor to an existing internal license tracking database;
3. Applications are reviewed by the IES contractor for their completeness and accuracy;
4. Subject matter experts at IES familiar with the requested data review the proposed research plan to ensure that it can support the requestor's research needs;
5. IES leadership approves the new license and access to data is provided.

Applicants may apply for multiple datasets under a single license, and multiple users may be associated with a license depending on how research activities are to be conducted (e.g., a faculty member may be the license-holder, and his or her graduate research assistances may be "additional users" for the purpose of completing one or more projects.) The license database is regularly updated to reflect such changes.

Finally, when research outputs are prepared, they must be reviewed by IES (or its designee) for compliance with standards designed to prevent inadvertent disclosure of confidential information. This process is referred to as Disclosure Risk Review (DRR). Historically, researchers transmit proposed manuscripts, presentations, or equivalent to IES DRR reviewers who then evaluate materials for disclosure risk and request edits as needed. Only after materials have successfully cleared the DRR review process may those materials be shared with individuals outside of the submitter's license. Presently, license holders who have virtual access to RUD have exports from the enclave preliminarily reviewed by enclave staff to ensure there are no immediate disclosure risks prior to eventual submission to IES for a formal review.

5. Scope of Work

5.1 Task 1: Meetings | Non-Optional

Subtask 1a: Contract Kick-Off Meeting/Annual Option Period Meetings

Within one (1) week of contract award in the base period and all exercised option periods, the contractor shall conduct a kick-off meeting virtually using an electronic meeting platform. A detailed meeting agenda shall be circulated no later than 48 hours prior to the meeting. The agenda will list items to be discussed and the time allotted for each item. Within 24 hours of the meeting, a final agenda will be published and circulated to all invitees. A completed meeting minutes template, which combines the meeting agenda with minutes and action items, will be disseminated to all invitees within one (1) week after the meeting.

Subtask 1b: Support for the IES Restricted-Use Data License Application Meetings

The contractor must establish, in coordination with the Contracting Officer's Representative (COR), regular weekly communications to take place on an online platform approved by the Department. The contractor must plan for an online meeting monthly with IES of approximately 75 minutes in length.

Table 2: Deliverables for Task 1

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
1.1	Kickoff Meeting Agendas and Notes	Agendas to be provided no later than 48 hours prior to the meeting; meeting to be scheduled within one week of award and Option Period exercise.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
1.2	Kickoff Meeting Minutes	Within one (1) week of kick-off meeting.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
1.3	Monthly Meeting Agendas and Notes	Monthly, to begin the week after kick-off.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

5.2 Task 2: Data Stewardship, Project Management and Reporting | Non-Optional

The contractor shall host a data repository (DR) for IES Restricted Use datasets. The contractor shall ingest and host all data currently available in IES's existing data repository (roughly 320 data sets, with an average file size of 850MB)¹. The contractor shall add to the data enclave roughly 60 additional data sets by September 30, 2026. Following that date, the contractor shall add to the data repository, approximately 5 data sets per year. IES anticipates bearing the cost of this data infrastructure.

Approximately five thousand users will be granted access to the DR at any given time. Each user must have a separate, private workspace that allows for the storage of statistical code and work product as well as provisioned access to the data file(s) to which they have been approved by IES to access. The contractor will permit secure researcher access to said datasets only after receiving notification from NCES that access has been approved and shall revoke access upon demand.

IES intends to collect a fee covering the costs associated with user workspaces. IES will not be charging for data use but rather for the provision of data access in a secure digital environment that preserves strict confidentiality protections as required under CIPSEA. At any given time, IES anticipates approximately 5,000 users across 1,000 licenses. The OMB approved user fees shall be paid to IES via a web portal set up and managed by the contractor. Invoicing shall be handled by the contractor on a portal that secures pass-through payment via check, ACH payment or Fedwire (or via an alternative method suggested by the contractor, if relatively low-cost to the data user). Monthly reporting shall include numbers of user licenses, users per license, and data byte usage, broken down by the contractor's specific pricing model.

The contractor shall provision the enclave with statistical software appropriate to the analysis of quantitative, complex survey data. This shall include open source (e.g., R, python) and non-open source (e.g., Stata) software solutions. The contractor is responsible for purchasing and maintaining licenses for this software in the most cost-effective manner possible. The contractor shall provide user support via email or phone with a 24-hour response time on weekdays.

The contractor shall provide a plan to transition all files and documentation at the end of each period of performance to ensure minimal disruption to continuous service. The contractor shall

¹ Note, IES will provide the contractor with all data files for ingestion. IES also anticipates a transfer of all researcher work products within the current data enclave to the new data enclave.

implement project management processes as are needed to ensure the timely achievement of the government's requirements and shall document the same as required in the table of deliverables listed below.

Table 3: Task 2 Deliverables

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
2.1	Pricing Model	Final model within 2 weeks of kickoff meeting; updated annually thereafter.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
2.2	Monthly Reports	Monthly cadence beginning in July, 2026.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
2.3	Transition Out Plan	Annually, at the close of each base and option period.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

5.3 Task 3: Subject Matter Expertise

The contractor must recruit Subject Matter Experts (SME) who possess sufficient knowledge to make determinations regarding the feasibility of research projects proposed by applicants (see "Requirement Context" above).

This requires expertise in the NCES data collections below (as a group of SMEs) as well as knowledge of high-quality education and/or behavioral research using sample-survey of similar data (as individual SMEs).

Given the data currently available to be licensed, expertise must be maintained across the areas of:

- National Teacher Principal Survey (NTPS) and Schools and Staffing Survey (SASS)
- National Postsecondary Student Aid Study (NPSAS), Baccalaureate and Beyond Longitudinal Study (B&B), Beginning Postsecondary Study (BPS)
- Early Childhood Longitudinal Study (ECLS) and National Household Education Surveys Program (NHES)

- d. Middle Grades Longitudinal Study (MGLS) and High School & Beyond (HS&B)
- e. National Assessment of Educational Progress (NAEP)
- f. Civil Rights Data Collection (CRDC)
- g. Trends in International Mathematics and Science Study (TIMSS), Program for International Student Assessment (PISA),
- h. Private School Survey (PSS) and Common Core of Data (CCD)

Subject matter experts will review RUD applications for research proposal feasibility and provide guidance to NCES RUD applicants regarding data availability. Unless otherwise and specifically permitted by NCES, the contractor must make determinations regarding applications within 30 days of submission by the applicant.

Table 4: Deliverables for Task 3

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
3.1	Documentation of Subject Matter Experts' Skills, Knowledge, Training and/or Experience	Within one (1) week of award, and then updated when SMEs are added or removed from the contract.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

5.4 Task 4: Export and Export Review | Non-Optional

The DR shall prevent users from exporting content prior to review. The contractor shall review all outputs generated from restricted use data, and implement technologies and processes as needed to ensure outputs are not exported from the DR until their compliance with those NCES statistical standards designed to prevent the disclosure per personally-identifiable information is fully met (see <https://nces.ed.gov/statprog/>). While NCES retains ultimate authority regarding determinations of disclosure risk, the contractor shall maintain sufficient expertise to make final determinations on NCES' behalf.

Unless otherwise and specifically permitted by NCES, the contractor must process each export within 30 days of submission by the user. The contractor shall, as described below, provide a summary of export reviews to the government monthly as a component of its monthly report.

Table 5: Task 4 Deliverables

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
4.1	Summary of Export Reviews	Monthly, the contractor shall list each export review conducted, including the associated user, data file, date the review was received, date the review was completed, and the elapsed time of the review.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

5.5 Task 5: Export Reviewer Seats | Non-Optional

The contractor shall provide login access to the DR for up to 10 government-specified users for the purpose of verifying export reviews conducted by the contractor in Task 2 above.

The contractors shall provide training to said users on the proper use of the DR for verification of export reviews.

Table 6: Task 5 Deliverables

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
5.1	Logins & training materials for up to 10 users	Within one week of award	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

5.6 Task 6: Confidential Information Protection and Statistical Efficiency Act (CIPSEA) and Education Sciences Reform Act (ESRA) Training

The contractor shall be responsible for developing training materials regarding the responsibilities of using data protected by CIPSEA and/or ESRA. The contractor should consider the extent to which those training materials might differ between three intended audiences: (a) IES staff, (b) restricted use license applicants, and (c) existing restricted use licensees.

The contractor shall also be responsible for designing and implementing a program that ensures audiences (a) and (c) above complete relevant training annually, and maintain records associated with training completion.

Table 7: Task 6 Deliverables

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
6.1	Training Plan, detailing proposed training modules, content, and audiences	Within 2 months of the contract award.	Base Period
6.2	Training Materials	Within 6 months of contract award.	Base Period
6.3	Training Status Update, identifying to IES any individuals who have failed to complete annual training requirements.	March 1, 2027 March 1, 2028 March 1, 2029 March 1, 2030 March 1, 2031	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

5.7 Task 7: IT System Security Compliance

To ensure the protection of Department of Education (ED) information and systems, all contractor personnel performing work for ED must strictly adhere to a comprehensive set of federal and Department-specific security requirements. These mandates, detailed on the official ED website, cover areas such as personnel security, IT system security, privacy, incident reporting, and data handling, all designed to safeguard sensitive data and maintain the integrity of ED's operational environment. The contractor is responsible for implementing robust security controls, complying with federal regulations and ED policies, and ensuring their systems and practices meet the stringent standards necessary for working with federal information. This Performance Work Statement further details the specific technical and procedural security obligations required for the successful execution of this contract.

Per the Federal Information Security Modernization Act (FISMA) and supporting Department of Education Regulation (EDAR) 3452.239-71 Department Information Security and Privacy Requirements (<https://www.acquisition.gov/edar/3452.239-71-department-information-security-and-privacy-requirements.?searchTerms=3452.239-71>), the Contractor, and all sub-contractors, shall comply with the Department of Education's IT security policy requirements, specifically those set forth in the Security Requirements for Contractors Doing Business with the Department of Education (<https://www2.ed.gov/fund/contract/about/bsp.html>). Additionally, the contractor, and all sub-contractors, shall develop and implement management, operational and technical security controls to ensure required levels of protection for information systems. Furthermore,

the contractor, and all sub-contractors, shall further comply with all applicable Federal IT security requirements including, but not limited to:

- Office of the Chief Information Officer's (OCIO) Personally Identifiable Information (PII) Processing and Transparency Standard
- Departmental Directive ACSD-OPEPD-002 Personally Identifiable Information Breach Response Policy and Plan
- Appendix III to Office of Management and Budget (OMB) Circular A-130
- Most recent applicable National Institute of Standards and Technology (NIST) special publications, standards and guidance

Any new information system intended for operation, and subsequent authorization, within the Department of Education (ED) environment shall first undergo and receive approval through the Department's Enterprise Architecture Technology Insertion (EATI) process. This EATI approval is a prerequisite that provides a risk evaluation for initial use/authorization that will then guide the subsequent detailed system authorization process, as supported by the technical requirements outlined in this Performance Work Statement (PWS). The EATI approval memo will explicitly define the timeline for the Contractor to complete all aspects of the authorization process as well as any specific requirements noted by each approval authority as it relates to security and/or privacy. Strict adherence to this timeline is critical, as failure to meet the specified requirements will result in significant implications for the system's authorization status, risk scorecard, and may negatively impact the associated program office.

Subtask 7.1: Rapid Risk Assessment (RRA) Requirements

Prior to initial authorization as part of the EATI process, the Contractor shall ensure the new system is prepared to address and demonstrate compliance with critical security controls during the Rapid Risk Assessment (RRA). This readiness includes, but is not limited to, the following areas:

1. *System Registration within GRCT:*

- a. The Contractor shall ensure that all points of contact for the system are accurately recorded and maintained within the Governance, Risk, and Compliance Tool (GRCT), formerly known as Cybersecurity Assessment and Management (CSAM).
- b. The Contractor shall ensure that the Federal Information Processing Standards (FIPS) 199 Categorization for the system's impact level (Confidentiality, Integrity, Availability) is completed and documented within CSAM.
- c. The Contractor shall also document and verify all hosting locations, including Cloud Service Providers (CSPs), primary data centers, and disaster recovery sites, along with their respective management offices, primary, and alternate locations within the CSAM system profile.

2. ***Vulnerability and Compliance Scanning:*** The system shall demonstrate active and effective vulnerability and compliance scanning processes and provide the ability for the results to be ingested into the Department cyber data lake solution.
3. ***Encryption:*** The system shall implement robust encryption for both data in transit and data at rest.
4. ***Audit Log Capabilities:*** The system shall possess comprehensive audit logging capabilities, capturing relevant security events in accordance with M-21-31.
5. ***Audit Correlation Capabilities:*** The system shall support the correlation of audit logs to facilitate security incident detection and provide the ability for the logs to be ingested into the Department security information and event management (SIEM) solution.
6. ***Multifactor Authentication (MFA):*** The system shall implement multifactor authentication for all access (e.g., users, administrators) to the information system and outlined within a digital identity risk assessment (DIRA).
7. ***Trusted Internet Connection (TIC) 3.0:*** The system's external network connections shall adhere to Trusted Internet Connection (TIC) 3.0 guidelines and requirements.

The above requirements must be adequately addressed ***no later than 30 calendar days prior to planned timeline for the information system to become operational within the ED environment (“go live” date)*** to allow the Security Assessment Team the necessary time to perform an authorization assessment, collaborate with the necessary security and privacy stakeholders, and ultimately work with the EATI chair/Authorizing Official to issue the initial authorization.

Subtask 7.2: Technical Requirements for System Authorization

The Contractor shall adhere to the following technical requirements to ensure comprehensive documentation, security posture, and compliance for all new system authorizations. The Contractor shall have the associated authorization documentation as outlined below completed ***no later than 90 days after contract award.***

7.2.1. System Security Plan (SSP)

The Contractor shall generate (automatically generated from Department GRC Tool) and maintain a **System Security Plan (SSP)** that meets the following criteria:

- The SSP shall comply with the **ED System Security Plan Checklist**.
- The SSP shall include a detailed **system description and boundary**.
- The SSP shall provide a comprehensive **hardware list** of all components within the system boundary.
- The SSP shall provide a comprehensive **software list** of all applications and operating systems utilized by the system.
- The SSP shall include a complete **ports, protocols, and services list** for the system.

- The Contractor shall ensure that **control inheritance** documented in CSAM accurately aligns with the SSP narratives, system architecture, and defined system boundary (e.g., General Support System (GSS) and/or Cloud Service Provider (CSP) inherited controls).
- The Contractor shall input **implementation statements** in CSAM for all applicable security controls, including both hybrid and system-specific controls.
- The Contractor shall **validate and provide justification** for any "Not Applicable" controls or statements set by the user within CSAM.

7.2.2. Agreements

The Contractor shall identify and document all relevant **Interconnection Security Agreements (ISAs)** and **Memorandums of Understanding/Agreements (MOUs/MOAs)** pertaining to the new system's interfaces and data exchanges with other systems or entities.

7.2.3. Required Documents

The Contractor shall develop, maintain, and provide the following essential system documentation:

- **Incident Response Plan (IRP)**
 - The Contractor shall execute and provide a **System Incident Response Test Report** demonstrating the effectiveness of the system's Incident Response Plan.
- **Contingency Plan (CP)**
 - The Contractor shall execute and provide the following test reports demonstrating the effectiveness of the system's Contingency Plan:
 - **System Contingency Plan Test Report**
 - **Disaster Recovery Plan Test Report** (if applicable)
- **Configuration Management Plan (CMP)**

7.2.4. Plan of Action and Milestones (POA&M)

The Contractor shall manage and report on the system's security posture through the following:

- The Contractor shall ensure that a **self-assessment is completed and recorded** within the Control Validation section of CSAM.
- The Contractor shall ensure that **Open POA&Ms** are created and maintained in CSAM for all identified deficiencies that are planned for remediation or are not yet in place.
- The Contractor shall provide all necessary **Risk Acceptance Packages** for any identified risks requiring formal acceptance.

7.2.5. Vulnerability Scan Results

The Contractor shall conduct and provide evidence of timely vulnerability and compliance scanning (**every 48 hours or less**) for the system's components in accordance with Chief Information Security Officer (CISO) Memo Cybersecurity and Infrastructure Security Agency

(CISA) Binding Operational Directive 23-01: Improving Asset Visibility and Vulnerability Detection on Federal Networks:

- **Network and endpoint device vulnerability scan results** shall be provided, with scans conducted no more than 30 days prior to authorization activities. Following initial authorization, the system must maintain the capability to perform on-demand vulnerability enumeration and automated scanning, with results provided to the Government within 48 hours of a request.
- **Operating system vulnerability scan results** shall be provided, with scans conducted no more than 30 days prior to authorization activities. Following initial authorization, the system must maintain the capability to perform on-demand vulnerability enumeration and automated scanning, with results provided to the Government within 48 hours of a request.

The Contractor shall conduct and provide evidence of timely vulnerability and compliance scanning (*every 48 hours or less*) for the system's components in accordance with the Vulnerability Scan Frequency Requirements outlined in the Information Technology (IT) Risk Assessment (RA) Standard:

- **Application vulnerability scan results** shall be provided, with scans conducted no more than 30 days prior to authorization activities. Following initial authorization, the system must maintain the capability to perform on-demand vulnerability enumeration and automated scanning, with results provided to the Government within 48 hours of a request.
- **Database management system vulnerability scan results** shall be provided, with scans conducted no more than 30 days prior to authorization activities. Following initial authorization, the system must maintain the capability to perform on-demand vulnerability enumeration and automated scanning, with results provided to the Government within 48 hours of a request.

7.2.6. Privacy Documentation

The Contractor shall work with the Privacy Office to ensure all necessary privacy documentation is created or modified, as applicable, including:

- **Privacy Threshold Analysis (PTA)**
- **Privacy Impact Assessment (PIA)**
- **System of Records Notice (SORN)**

7.2.7. Document Templates

To facilitate prompt completion of the above requirements in the Department-preferred format, templates for the documentation will be provided at contract award.

7.2.8 Federal Risk and Authorization Management Program (FedRAMP) Requirements (if applicable)

For systems leveraging a FedRAMP authorized cloud service offering, the Contractor must understand that FedRAMP provides a standardized approach to security assessment, authorization, and continuous monitoring for cloud products and services. While FedRAMP authorization significantly streamlines the security process, it does not represent a full authorization to operate (ATO) within the Department of Education's environment. The Contractor is contractually obligated to thoroughly review and address all customer responsible controls as identified in the associated Customer Responsibility Matrix (CRM) for the specific FedRAMP product being utilized. Simply stating that a system is FedRAMP authorized is insufficient; the Contractor shall document how each customer responsible control is sufficiently implemented and validated for the identified information system, ensuring alignment with Department-specific security policies and requirements. This ensures a complete security posture tailored to ED's operational context and risk appetite.

7.2.9 Technical Requirements for Information Security Continuous Monitoring (ISCM)

Upon completion of all technical requirements and initial authorization, the system will transition into the Department's continuous monitoring and security authorization program. This is not the end of the security process, but rather a shift to ongoing oversight. The purpose of this program is to ensure the system maintains its security posture over time, adapting to new threats and vulnerabilities. Continuous monitoring involves regular assessments, vulnerability scanning, compliance scanning, and control validation to confirm that the system remains compliant with all security policies and standards. This proactive approach ensures the system's continued protection of Department data and resources throughout its entire lifecycle.

As part of the OSA Program, the contractor is responsible for the following actions:

- 1) The information system must maintain its current system configuration throughout the course of the assessment to maintain consistency of assessment results.
 - a) The SAT must be notified in advance that a configuration change is required during the security assessment activities to permit the appropriate modifications to the overall security assessment schedule.
- 2) System stakeholders must manage and maintain a list of CSP or GSS leveraged services within the system or technical description and the CSAM software inventory.
- 3) Information system stakeholders will be available for interviews and information system walkthroughs/demonstrations.
- 4) Designated information system stakeholders are responsible for requesting all applicable and appropriate authenticated scans (e.g., vulnerability, compliance) on all applicable devices within the authorization boundary (e.g., web applications, databases, servers) as stated within the published Department Standards.
- 5) All required documents have been appropriately developed, approved, updated, and uploaded as an artifact in CSAM, and attached to the appropriate control(s).

- 6) The information system ISSO must conduct the “Control Level Review” for each implementation statement within CSAM. The Control Level Review will provide a continuous level of assurance of an information system’s security posture. Each control shall be reviewed the quarter prior to its assessment by the SAT in accordance with the defined motives and published OSA schedule.

Table 8: Deliverables for Task 7

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
7.1	Security Categorization and Information Types (FIPS 199)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.2	Digital Identity Risk Assessment (DIRA)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.3	Technical Description	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.4	System Description	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.5	Configuration Management Plan (CMP)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.6	Information System Contingency Plan (ISCP)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
7.7	Contingency Plan Test Results (CPT)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.8	Incident Response Plan (IRP)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.9	Incident Response Plan Test Results (IRPT)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.10	Disaster Recovery Plan (DRP)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.11	Disaster Recovery Plan Test (DRPT)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.12	Business Continuity Plan (BCP)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.13	Business Continuity Plan Test (BCPT)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.14	Hardware Listing	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated quarterly or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
7.15	Software Listing	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated quarterly or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.16	Privacy Threshold Analysis (PTA)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated bi-annually or as requested by the SAOP.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.17	Privacy Impact Assessment (PIA), if required	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated bi-annually or as requested by the SAOP.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.18	Memoranda of Understanding (MOU), Interconnection Security Agreements (ISAs), Inter-Agency Agreements (IAA), and Service-Level Agreements (SLAs), if required	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.19	Business Impact Analysis (BIA)	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4
7.20	SSP Checklist	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then reviewed/updated annually or as requested by the COR.	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

Deliverable No.:	Deliverable Name	Deliverable Due Date	Period of Performance
7.21	Vulnerability Scans	No later than 30 calendar days prior to planned information system “go live” (not to exceed 90 days after contract award) and then as follows for each type of scan: • Operating system – Weekly • Web Application – Monthly • Database – Monthly • Infrastructure components – Monthly • DHS Cyber Hygiene – as conducted by DHS	Base Period Option Period 1 Option Period 2 Option Period 3 Option Period 4

6. Key Personnel/Staff Qualifications

Offerors shall propose key personnel they deem most appropriate to complete the tasks outlined in this requirement. After award, the successful vendor will require the consent of IES to replace the project director (or equivalent).

7. Quality Control and Assurance

ED shall evaluate the contractor’s performance in accordance with the Quality Assurance Surveillance Plan (QASP; see Attachment 1.A) associated with this procurement.

8. Additional ED and Federal-Wide Requirements

8.1 Records and Controlled Unclassified Information (CUI) Requirements

"Federal record" as defined in [44 U.S.C. § 3301](#), includes all information, made or received by a Federal agency in connection with the transaction of public business. ED owns rights to all records produced as part of this contract. Any Contractor rights must be identified as required by FAR 52.227-11 through FAR 52.227-20.

Federal records must be managed according to the applicable records management laws and regulations, to include the Federal Records Act (44 U.S.C. chs. [21](#), [29](#), [31](#), [33](#)), [36 CFR Chapter XII Subchapter B](#), and the Privacy Act of 1974 ([5 U.S.C. 552a](#)).

Federal records which are CUI must additionally be managed in accordance with any applicable laws, regulations and government-wide policies (LRGWP) to include [EO 13556](#), [32 CFR Part 2002](#), ED Directive OCIO 3-113, and [NIST-800-171 Revision 2](#) (or current version).

- Applicability: This clause applies to all Contractors and sub-contractors (hereafter referred to as “Contractors”) and must be incorporated into all subcontracts.
- Training Requirements: All Contractors are required to take the annual Information Management Requirements training. If the contract includes CUI the CUI Identification and Marking Training is required. Additional Category or POC specific trainings may be assigned. Contractor will maintain completion certificates and provide upon request.
- Electronic Information System Requirements: Any electronic information system should address at minimum the following regulations in [36 CFR 1236.10](#). Agencies must incorporate controls into the system or integrate them into a recordkeeping system that is external to the information system itself (see [36 CFR 1236.20](#) for recordkeeping system functionalities). Information systems that process, store, or transmit CUI must fulfill the requirements outlined in [32 CFR 2002.14\(g\)](#).
- Marking Requirements: The Contractor will mark CUI as outlined in Department training.
- Handling and Safeguarding Requirements: The Contractor will ensure that CUI is managed appropriately. The requirements include safeguarding, controlled environments, shipping and mailing or transporting protections, and reproduction protections (see [32 CFR 2002.14\(a-e\)](#)).
- Contract Completion Requirements: Removal or destruction of records must be in accordance with assigned ED records schedule and must include written concurrence from the CO/COR. If records are removed or destroyed the Contractor must report the incident to ED immediately. Destruction or removal of records without the above requirements is subject to fines and penalties imposed by 18 U.S.C. 2701.
- Compliance with Information Protection Requirements: ED reserves the right to verify compliance with information security requirements established by this contract. The Contractor will fully comply with all ED-initiated inspections as permissible by law.
- Information Security Incidents (ISI) Requirements: Contractors must immediately report any and all suspected security incidents, breaches, and events involving ED information to ED’s Computer Incident Response Center (EDCIRC) email: edcirc@ed.gov, and ED’s Security Operations Center (EDSOC) email: edsoc@ed.gov; voice: 202-243-6550, regardless of whether the ISI is suspected, known, or determined to involve IT systems operated in support of this contract. In the event of an ISI, ED must be provided immediate access to all IT systems used in support of this contract for inspection and analysis.

8.2 IT Accessibility Requirements (Section 508 of the Rehabilitation Act)

Section 508 of the Rehabilitation Act, as amended by P.L. 105-220, requires that when Federal agencies develop, procure, maintain, or use information and communication technology (ICT), it shall be accessible to people with disabilities. Products, platforms and services delivered as part of this work statement that are or contain ICT, must conform to the Revised 508 Standards, at [36 C.F.R. § 1194.1 & Apps. A, C & D](#). <https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule/text-of-the-standards-and-guidelines>

- Applicable Functional Performance Criteria: When using an alternative design or technology that achieves substantially equivalent or greater accessibility and usability by

individuals with disabilities than would be provided by conformance to one or more of the requirements in Chapters 4-6 of the Revised 508 Standards, or when Chapters 4-6 do not address one or more functions of ICT. – All requirements apply

- [Applicable requirements for software features and components](#): All WCAG Level AA Success Criteria, 502 Interoperability with Assistive Technology, 503 Application – Applies if client server software (installed on a computer) is a part of the procurement.
- [Applicable requirements to Webpage and Web Applications](#): All WCAG Level AA Success Criteria – Applies if websites or a web-based application (browser based) is part of the procurement.
- [Applicable requirements for hardware features and components](#): Applies if hardware is part of the procurement. (e.g. copiers, fax machines, phones, scanner etc.)
- [Applicable support services and documentation](#): All requirements apply.
- [Instructions to Offerors](#): Provide an Accessibility Conformance Report (ACR) for each commercially available ICT item offered through this contract. Create the ACR using the [Voluntary Product Accessibility Template](#). Complete each ACR in accordance with the instructions provided in the VPAT template. Each ACR must address the applicable Section 508 requirements referenced in the Work Statement. Each ACR shall state exactly how the ICT meets the applicable standards in the remarks/explanation's column, or through additional narrative.
- [Acceptance Criteria](#): Prior to acceptance, the government reserves the right to perform testing on required ICT items to validate the offeror's Section 508 conformance claims. If the government determines that Section 508 conformance claims provided by the offeror represent a higher level of conformance than what is actually provided to the agency, the government shall, at its option, require the offeror to remediate the item to align with the offeror's original Section 508 conformance claims prior to acceptance.

8.3 Security Clearance Requirements

(a) The Contractor and its subcontractors shall comply with Department of Education personnel, cyber, privacy, and security policy requirements set forth in "Contractor Security Vetting Requirements" at <http://www.ed.gov/fund/contract/about/bsp.html>.

(b) Contractor employees who will have access to proprietary or sensitive Department information including "Controlled Unclassified Information" as defined in 32 CFR 2002.4(h), Department IT systems, Contractor systems operated with Department data or interfacing with Department systems, or Department facilities or space, or perform duties in a school or in a location where children are present, must undergo a personnel security screening and receive a favorable determination and are subject to reinvestigation as described in the "Contractor Vetting Security Requirements." Compliance with the "Contractor Vetting Security Requirements," as amended, is required.

(c) The type of security investigation required to commence work on a Department contract is dictated by the position designation determination assigned by the Department. All Department Contractor positions are designated commensurate with their position risk/sensitivity, in accordance with title 5 of the Code of Federal Regulations (5 CFR 731.106) and OPM's Position Designation Tool (PDT) located at: <https://pdt.nbis.mil/>. The position designation determines the risk level and the corresponding level of background investigations required.

- (d) The Contractor shall comply with all Contractor position designations established by the Department.
- (e) The following are the Contractor employee positions required under this contract and their designated risk levels:

High Risk (HR): Positions with duties that include system administration and information security.

Moderate Risk (MR): Positions with duties that require access to NCES Restricted Use Datasets, the ability to provision those datasets to other uses, or conducting Disclosure Risk Review.

Low Risk (LR): Positions with access to applications for use of NCES Restricted Use Data or that perform substantive functions, to exclude such positions as personnel who perform only accounting, finance, or contractual activities.

- (f) For performance-based contracts where the Department has not identified required labor categories for Contractor positions, the Department considers the risk sensitivity of the services to be performed and the access to Department facilities and systems that will be required during performance, to determine the uniform Contractor position risk level designation for all Contractor employees who will be providing services under the contract. The uniform Contractor position risk level designation applicable to this performance-based contract is: **N/A; see clause (e) above.**

(g) Only U.S. citizens will be eligible for employment on contracts requiring a Low Risk/Public Trust, Moderate Risk/Public Trust, High Risk/Public Trust, or a National Security designation.

(h) An approved waiver, in accordance with the “Contractor Vetting Security Requirements,” is required for any exception to the requirements of paragraph (g) of this section.

(i) The Contractor shall—

- (1) Comply with the Principal Office (PO) processing requirements for personnel security screening;
- (2) Ensure that no Contractor employee is placed in a higher risk position than for which the employee is approved;
- (3) Ensure Contractor employees submit required security forms for reinvestigation in accordance with the time frames set forth in the “Contractor Vetting Security Requirements”;
- (4) Report to the COR any information (e.g., personal conduct, criminal conduct, financial difficulties) that would raise a concern about the suitability of a Contractor employee or whether a Contractor employee's continued employment would promote the efficiency of the service or violate the public trust;
- (5) Protect sensitive and Privacy Act-protected information, including “Controlled Unclassified Information” as defined in 32 CFR 2002.4(h), from unauthorized access, use, or misuse by its Contractor employees, prevent unauthorized access by others, and report any instances of unauthorized access, use, or misuse to the COR;
- (6) Report to the COR any removal of a Contractor employee from a contract within one business day if removed for cause or within two business days if otherwise removed;

- (7) Upon the occurrence of any of the events listed under paragraph (b) of the clause at FAR 52.204-9, Personal Identity Verification of Contractor Personnel, return a PIV ID to the COR within seven business days of the Contractor employee's departure; and
 - (8) Report to the COR any change to job activities that could result in a change in the Contractor employee's position or the need for increased security access.
- (j) Failure to comply with any of the personnel security requirements in the "Contractor Security Vetting Requirements" at <http://www.ed.gov/fund/contract/about/bsp.html>, may result in a termination of the contract for default or cause.

8.4 Additional Information System Requirements

Per OMB-M-17-12, Preparing for and Responding to a Breach of Personally Identifiable Information, that includes the management of Personally Identifiable Information (PII) and/or Sensitive Personally Identifiable Information (SPII):

- A. The contractor and its subcontractor (at any tier) will be required to cooperate with and exchange information with ED officials, as determined necessary by ED, in order to effectively report and manage a suspected or confirmed breach;
- B. The contractor and its subcontractors (at any tier) will properly encrypt PII in accordance with OMB Circular A-130 and other applicable policies and to comply with any ED-specific policies for protecting PII;
- C. The contractor and its subcontractor (at any tier) will complete regular ED training for contractors and subcontractors (at any tier) on how to identify and report a breach;
- D. The contractor and its subcontractors (at any tier) will report a suspected or confirmed breach in any medium or form, including paper, oral, and electronic, as soon as possible and without unreasonable delay, consistent with the ED's incident management policy and contractor and subcontractors (at any tier) will maintain capabilities to determine what Federal information was or could have been accessed and by whom, construct a timeline of user activity , determine methods and techniques used to access Federal information, and identify the initial attack vector;
- E. The contractor and its subcontractors (at any tier) will allow for an inspection, investigation, forensic analysis, and any other action necessary to ensure compliance with Federal and ED PII Breach Response policies (such as OMB-M-17- 12), ED's breach response plan, and to assist with responding to a breach;
- F. The contractor and its subcontractors (at any tier) will identify roles and responsibilities, in accordance with Federal and ED PII Breach Response policies (such as OMB-M-17-12), and ED's breach response plan; and,
- G. The contractor and its subcontractors (at any tier) will be aware that a report of a breach shall not, by itself, be interpreted as evidence that the contractor or its subcontractor(s) (at any tier) failed to provide adequate safeguards for PII. If there is a suspected or known breach/disclosure of PII due to lost, theft, intercepted transfer, or other, the contractor and subcontractors (at any tier) will ensure that this breach is reported to EDCIRC and US-CERT as soon as the contractor or its subcontractor (at any tier) has knowledge of it. Per Office of Management and Budget Memorandum M-17-12, Federal agencies have a requirement to report breaches of PII security to the United States Computer Emergency Response Team (US-CERT)." The (PO) must notify the EDCIRC at ED within 30 minutes of discovering the

incident (and the contractor and its should not distinguish between suspected or confirmed breaches). The data security plan will be written to reflect this requirement, and the contractor or its subcontractor (at any tier) must provide sufficient notification and documentation of the suspected loss, as it is understood at the time of notification to ED for this requirement to be met. Follow-up reports of the final status of loss events will also be prepared by the contractor within a reasonable period of time as advised by the contracting officer's representative (COR).

In accordance with OMB Memorandums M-17-06 , M-15-13, M-08-23, and M-10-23, and with Binding Operational Directive (BOD) BOD-18-01, and with the NIST SP 800 -52 and with the NIST SP 800-44, all Federal websites and web services must be accessible through a secure connection (HTTPS only, with HSTS), and e-mail applications must have SMTP enabled. The use of HTTPS is encouraged on intranets, but not explicitly required.

In accordance with BOD-18-01: In accordance with OMB Memorandum M-08-23, in order to ensure Domain Name System Security (DNSSEC), all federal websites must be hosted on a *.gov location. If there are or will be any FIPS-199 HIGH systems built, developed, impacted, or modified in any way, per the NIST SP 800-161, "Supply Chain Risk Management Practices for Federal Information Systems and Organizations," the contractor and its subcontractors (at any tier) will comply with the NIST SP 800-161, and the contractor will ensure that all FIPS-199 HIGH systems incorporate language enforcing the security control, "Supply Chain Protection," and all of the applicable security control enhancements within that same security control, SA-12, "Supply Chain Protection," and any subsequent security controls on Supply Chain Protection in any future, finalized publications of the NIST. The contractor and its subcontractors (at any tier) must comply with the Foreign Investment Risk Review Modernization Act of 2018 (FIRRMA), and with its amendment, the Federal Acquisition Circular (FAC) 2019-05. The contractor and its subcontractors (at any tier) will comply with the Department of Homeland Security's Binding Operational Directive (BOD 17-01), "Removal of Kaspersky-Branded products".

9. Data Ownership, Rights, and Custody

9.1 Data Storage

Data Storage Location: Data will reside in contractor system

9.2 Confidential Treatment of Sensitive Information

The security procedures used to protect restricted use data are based on the Privacy Act of 1974, as amended; the Confidential Information Protection and Statistical Efficiency Act of 2002, Title V (CIPSEA) as codified in the Foundations of Evidence-Based Policymaking Act of 2018, Title III, Part B, Confidential Information Protection; and the Education Sciences Reform Act of 2002. These statutes provide for the security and privacy of restricted use data collected by the NCES and other Federal Agencies. Sections of these laws make unlawful the disclosure or improper use of restricted-use data, and subject to a fine and/or imprisonment. Other statutes may apply under certain circumstances, such as the Computer Fraud and Abuse Act of 1986, which makes it a

felony to gain unauthorized access to a computer system containing Federal data, or to abuse the access one has with the purpose of doing malicious destruction or damage.

The Family Educational Rights and Privacy Act (FERPA), 20 USC § 1232g and its implementing regulations at 34 CFR Part 99, impose written agreement requirements on the disclosure of any personally identifiable information (PII) from education records and require that such PII be protected in a manner that does not permit personal identification of individuals by anyone other than the Secretary of Education and her authorized representatives.

Upon award, all contractor staff with access to NCES data will be required to execute an Affidavit of Non-Disclosure indicating their awareness of these requirements and the specific criminal penalties associated with their violation.

10. Attachments

Attachment 1.A: Quality Assurance Surveillance Plan

10.1 Attachment 1.A Quality Assurance Surveillance Plan (QASP)

U.S. Department of Education
Institute of Education Sciences
QUALITY ASSURANCE SURVEILLANCE PLAN

NCES Data Repository and Restricted Use Data Program

Introduction

This Quality Assurance Surveillance Plan (QASP) sets forth procedures and guidelines that the Department of Education will use to monitor performance of the Contractor under this contract. A copy of this plan will be furnished to the contractor to outline the methods that the Government will employ in monitoring performance on this project and address any concerns that the contractor may have prior to initiating work.

Purpose of the QASP

The QASP is intended to accomplish the following:

- Define the roles and responsibilities of participating Government officials and outside experts;
- Describe the process of quality assurance surveillance; and
- Each of these purposes is discussed in detail below.

Roles and Responsibilities of Participating Government Officials

The following Government Officials will participate in assessing the quality of the contractor's performance. Their roles and responsibilities are described as follows:

Contracting Officer's Representative (COR). The COR will be responsible for monitoring, assessing, and providing feedback and reporting on the technical performance of the contractor on a day-to-day basis. The COR will also be responsible for inspecting all deliverables submitted under this contract and providing a recommendation regarding the acceptability of the deliverable to the Contracting Officer. It is essential that the COR establish and maintain a team-oriented line of communication with the Contractor's Project Director (PD) in order to perform monitoring functions. The COR, Contracting Officer (CO), and PD must work together as a team to ensure that required work is accomplished in an efficient and proper manner. Meetings should be held on a regular basis to make sure there are no outstanding problems and serious problems should be discussed and resolved on an impromptu basis and in a timely manner.

The Contracting Officer (CO) and the Contract Specialist (CS). The CO will have overall responsibility for overseeing the contractor's performance. The CS will be responsible for the day-to-day monitoring of the contractor's performance in the areas of compliance, administration, cost control and property control; reviewing the COR's assessment of the contractor's performance; and resolving all differences between the COR's version and the contractor's version. The CO may call upon the expertise of other Government individuals as required.

Quality Assurance Surveillance Process

The Department of Education will use a quality assurance review process to monitor the contractor's performance under this contract through the contract deliverables, specifically through a review of the timeliness of submission and the acceptability of the content of each deliverable to achieve the objectives described in accordance with the plan in the Performance Work Statement (PWS) for the contract. The

PWS will be included in the contract at the time of award, or through a subsequent modification signed by the CO.

The COR will inspect each deliverable and recommend acceptance of the deliverable to the Contracting Officer. In the event the COR has a concern regarding the timeliness or quality of the content of a deliverable, the contractor shall be notified as well as the Contracting Officer shall be notified.

The Contractor's performance shall be documented and measured through the annual past performance evaluation through the Contractor Performance Assessment Reporting System (CPARS). Performance will be evaluated in the areas of:

- Quality of Product or Service
- Schedule
- Cost Control (if applicable)
- Business Relations
- Management of Key Personnel

The following rating elements will be used to evaluate each area:

Rating	Definition
Exceptional	Performance meets all contractual requirements and exceeds many to the Government's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the Contractor were highly effective.
Very Good	Performance meets contractual requirements and exceeds some to the Government's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the Contractor were effective.
Satisfactory	Performance meets contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the Contractor appear or were satisfactory.
Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the Contractor has not yet identified corrective actions or the Contractor's proposed actions appear only marginally effective or were not fully implemented.
Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains a serious problem(s) for which the Contractor's corrective actions appear or were ineffective.

Small Business Participation Participation Plan Template

This template is provided to offerors as a guide and sample format for proposing to the requirements for evaluation of the small business participation requirements (criteria) stated in section M. Irrespective of the content of this template, Offeror's are responsible for ensuring they meet all requirements of the Small Business Participation Factor as stated in section M.

A. Prime Offeror's Size

*Check the applicable size and applicable socioeconomic categories for the **PRIME** offeror only -- Check all applicable boxes:*

- ☐ ☐ Other than Small Business
or
☐ ☐ Small Business also categorized as a
 ☐ ☐ Small Disadvantaged Business (SDB)
 ☐ ☐ Woman-Owned Small Business (WOSB)
 ☐ ☐ Historically Underutilized Business Zone (HUBZone) Small Business
 ☐ ☐ Service Disabled Veteran Owned Small Business (SDVOSB)

B. Quantitative Participation of Small Businesses

Proposed Total Contract Value _____

Quantitative Small Business Participation (Including Small Business prime offeror's participation)

Business Category	Dollar Value	% of Total Contract Value
Total Small Business	\$ _____	_____ %
Small Disadvantaged Business	\$ _____	_____ %
Woman-Owned Small Business	\$ _____	_____ %
HUBZone Small Business	\$ _____	_____ %
Veteran-Owned Small Business	\$ _____	_____ %
Service-Disabled Veteran-Owned Small Business	\$ _____	_____ %

Provide detailed explanations/documentation to support quantitative small business participation. All supporting documents are excluded from the page count. Supporting documents will not be incorporated into any resulting contract.

C. Extent of Small Business Participation

Company Name	Business Category(ies)	Product(s)/Service(s) to be Provided	NAICS Code	Nature of Commitment

Offerors shall provide documentation that substantiates the nature of the commitment listed. All letters of commitment, joint venture arrangements, etc. are excluded from the page count. Substantiating documents will not be incorporated into any resulting contract.

D. Evaluation of Small Business Past Performance

Compliance with requirements of FAR 52.219-8, Utilization of Small Business Concerns

To support evaluation of prior compliance with FAR 52.219-8, Utilization of Small Business Concerns, demonstrate the extent to which small business performance objectives/requirements were met **for the contracts that were identified under Factor XX Past Performance** that required submission of a Small Business Participation Plan or other small business participation/utilization document.

Compliance with requirements of FAR 52.219-9, Small Business Subcontracting Plan

To support evaluation of prior compliance with FAR 52.219-9, Small Business Subcontracting Plan (if applicable), demonstrate the extent to which applicable goals and other small business performance objectives/requirements were met **for the contracts that were identified under Factor XX Past Performance** that required submission of a Subcontracting Plan. Copies of eSRS reports for completed contracts may be submitted to validate subcontracting plan compliance and will not count against the page limitation. Explanation of efforts where goals were not met should be provided.

Substantiating documents provided to demonstrate compliance with FAR 52.219-8, Utilization of Small Business Concerns and/or FAR 52.219-9, Small Business Subcontracting Plan are excluded from the page count and will not be incorporated into any resulting contract.